

NEW SERIES

No. 50

THE JOURNAL
OF
PRISON DISCIPLINE
AND
PHILANTHROPY

PUBLISHED ANNUALLY

BY THE

PENNSYLVANIA PRISON SOCIETY

INSTITUTED MAY 8, 1897

NOVEMBER, 1911

OFFICE: STATE HOUSE ROW

S. W. CORNER FIFTH AND CHESTNUT STREETS

PHILADELPHIA, PA.

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Discipline and Philanthropy (New Series, No. 50) November
1911**

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OF PRISON DISCIPLINE AND PHILANTHROPY (NEW SERIES, NO.
50) NOVEMBER 1911 ***

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PUBLISHED ANNUALLY
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OFFICE: STATE HOUSE ROW
S. W. CORNER FIFTH AND CHESTNUT STREETS
PHILADELPHIA, PA.

OFFICIAL VISITORS.

No person who is not an official visitor of the prison, or who has not a written permission, according to such rules as the Inspectors may adopt as aforesaid, shall be allowed to visit the same; the official visitors are: the Governor, the Speaker and members of the Senate; the Speaker and members of the House of Representatives; the Secretary of the Commonwealth; the Judges of the Supreme Court; the Attorney-General and his Deputies; the President and Associate Judges of all the courts in the State; the Mayor and Recorders of the cities of Philadelphia, Lancaster, and Pittsburg; Commissioners and Sheriffs of the several Counties; and the “Acting Committee of the Philadelphia Society for Alleviating the Miseries of Public Prisons.” (Note: Now named “The Pennsylvania Prison Society.”) —*Section 7, Act of April 23, 1829.*

The above was supplemented by the following Act, approved March 20, 1903:

AN ACT.

To make active or visiting committees of societies incorporated for the purpose of visiting and instructing prisoners official visitors of penal and reformatory institutions.

SECTION 1. Be it enacted, etc., That the active or visiting committee of any society heretofore incorporated and now existing in the Commonwealth for the purpose of visiting and instructing prisoners, or persons confined in any penal or reformatory institution, and alleviating their miseries, shall be and are hereby made official visitors of any jail, penitentiary, or other penal or reformatory institution in this Commonwealth, maintained at the public expense, with the same powers, privileges, and functions as are vested in the official visitors of prisons and penitentiaries, as now prescribed by law: Provided, That no active or visiting committee of any such society shall be entitled to visit such jails or penal institutions, under this act, unless notice of the names of the members of such committee, and the terms of their appointment, is given by such society, in writing, under its corporate seal, to the warden, superintendent or other officer in charge of such jail, or other officer in charge of any such jail or other penal institution.

Approved—The 20th day of March, A. D. 1903.

SAML. W. PENNYPACKER.

The foregoing is a true and correct copy of the Act of the General Assembly No. 48.

FRANK M. FULLER,
Secretary of the Commonwealth.



THE PENNSYLVANIA PRISON SOCIETY OFFICE, S. W. COR. 5TH AND
CHESTNUT STS.

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UNDER THE DIRECTION OF "THE PENNSYLVANIA PRISON SOCIETY"

INSTITUTED MAY 8, 1787

NOVEMBER, 1911

OFFICE: STATE HOUSE ROW
S. W. CORNER FIFTH AND CHESTNUT STREETS

PHILADELPHIA, PA.



SPECIAL NOTICES.

All correspondence with reference to the work of the Society, or to the JOURNAL OF PRISON DISCIPLINE AND PHILANTHROPY, should be addressed to THE PENNSYLVANIA PRISON SOCIETY, 500 Chestnut St., Philadelphia, Pa.

The National Prison Congress of the United States for the past ten years has designated the fourth Sunday in October, annually, as Prison Sunday. To aid the movement for reformation, some speakers may be supplied from this Society. Apply to chairman of the Committee on Prison Sunday.

FREDERICK J. POOLEY is the General Agent of the Society. His address is 500 Chestnut St., Philadelphia.

Contributions for the work of the Society may be sent to JOHN WAY, Treasurer, 409 Chestnut St., Philadelphia.

FORM OF BEQUEST OF PERSONAL PROPERTY.

I give and bequeath to “THE PENNSYLVANIA PRISON SOCIETY” the sum of
Dollars.

FORM OF DEVISE OF REAL ESTATE.

I give and devise to “THE PENNSYLVANIA PRISON SOCIETY” all that certain piece or parcel of land. (Here describe the property.)

OFFICERS OF THE SOCIETY FOR 1911

PRESIDENT

JOSHUA L. BAILY, 30 S. Fifteenth Street, Philadelphia.

VICE-PRESIDENTS

REV. HERMAN L. DUHRING, D. D., 225 S. Third Street, Philadelphia.

REV. F. H. SENFT, 560 N. Twentieth Street, Philadelphia.

TREASURER

JOHN WAY, 409 Chestnut Street, Philadelphia.

HONORARY SECRETARY

¹JOHN J. LYTLE, Moorestown, N. J.

SECRETARY

ALBERT H. VOTAW, 500 Chestnut Street, Philadelphia.

HONORARY COUNSELOR

HON. WILLIAM N. ASHMAN, 44th and Spruce Streets, Philadelphia.

COUNSELORS

HENRY S. CATTELL, ESQ., 1218 Chestnut Street, Philadelphia.
OWEN J. ROBERTS, ESQ., West End Trust Building, Philadelphia.

GENERAL AGENT

FREDERICK J. POOLEY, 500 Chestnut Street, Philadelphia.

THE ACTING COMMITTEE

FOR ONE YEAR

Rev. Floyd W. Tomkins, D.D.,	Henry C. Cassel,
Rev. J. F. Ohl,	Albert Oetinger,
Harry Kennedy,	Rev. Philip Lamerdin,
Layyah Barakat,	Mrs. E. W. Gormly,
William E. Tatum,	A. Jackson Wright,
Mary S. Wetherell,	Frank H. Longshore,
George S. Wetherell,	Charles H. LeFevre,
	Rev. M. Reed Minnich.

FOR TWO YEARS

¹ John J. Lytle,	Dr. William C. Stokes,
P. H. Spellissy,	Deborah C. Leeds,
Fred J. Pooley,	Mrs. Horace Fassitt,
William Scattergood,	Joseph C. Noblit.
Mrs. P. W. Lawrence,	Miss C. V. Hodges,
William Koelle,	Rebecca P. Latimer,
Rev. R. Heber Barnes,	Joseph Rhoads.

FOR THREE YEARS

Charles P. Hastings,	Harrison Walton,
Isaac P. Miller,	Mrs. Mary S. Grigg,
Elias H. White,	Robert B. Adams,
John Smallzell,	William Morris,
John A. Duncan,	Emma L. Thompson.
Samuel B. Garrigues,	Annie McFedries,
Charles McDole,	¹ Robert P. Nicholson,
	Rev. Thomas Latimer.

¹ Deceased 1911.

COMMITTEES FOR 1911

Visiting Committee for the Eastern State Penitentiary:

² John J. Lytle,	Frank H. Longshore,	William Morris,
P. H. Spellissy,	A. Jackson Wright,	Robert B. Adams,
Dr. William C. Stokes,	Charles H. LeFevre,	Rev. M. Reed Minnich,
Rev. F. H. Senft,	Charles P. Hastings,	² Robert P. Nicholson,
William Koelle,	John Smallzell,	Deborah C. Leeds,
Joseph C. Noblit,	Charles McDole,	Mrs. Horace Fassitt,
Rev. Philip Lamerdin,	Samuel B. Garrigues,	Miss Rebecca P. Latimer,
Harry Kennedy,	Harrison Walton,	Layyah Barakat,
Rev. J. F. Ohl,	Albert H. Votaw,	Mary S. Wetherell,
William E. Tatum,	Rev. Thomas Latimer,	Mrs. Mary S. Grigg,
George S. Wetherell,	J. A. Duncan,	Emma L. Thompson.
Henry C. Cassel,	Isaac P. Miller,	

Visiting Committee for the Philadelphia County Prison:

Joseph C. Noblit,	Albert H. Votaw,	Miss C. V. Hodges,
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John A. Duncan, Mrs. P. W. Lawrence, Miss Rebecca P.
Latimer.

Isaac P. Miller, Deborah C. Leeds,
William Morris, Mrs. Horace Fassitt,

For the Holmesburg Prison:

Frederick J. Pooley, Rev. Philip Lamerdin, William Morris.

For the Philadelphia House of Correction:

William Koelle, William Morris, Deborah C. Leeds.
Layyah Barakat,

For the Chester and Delaware County Prison:

William Scattergood, John Way, Mrs. Deborah C. Leeds.
Joseph Rhoads,

For the Bucks County Prison:

(One vacancy.)

Albert Oetinger.

Committee on Western Penitentiary and Allegheny County Prison:

Miss Annie McFedries, Mrs. E. W. Gormly.

Committee on Discharged Prisoners:

Joseph C. Noblit, George S. Wetherell, Miss C. V. Hodges.
Dr. William C. Stokes, Mrs. Horace Fassitt,

Committee on Police Matrons:

Mrs. Mary S. Grigg, Miss C. V. Hodges, Miss Rebecca P.
Latimer.

Committee on Prison Sunday:

Rev. H. L. Duhring, Rev. R. Heber Barnes, Rev. Philip Lamerdin.
D.D.,

Rev. J. F. Ohl,

Rev. F. H. Senft,

Editorial Committee:

Rev. R. Heber Barnes,
Albert H. Votaw,

Rev. J. F. Ohl,
The President (ex
officio)

Dr. William C. Stokes.

Committee on Legislation:

Rev. J. F. Ohl,

Elias H. White,

²Robert P. Nicholson.

Rev. R. Heber Barnes,

Joseph C. Noblit,

Membership Committee:

Dr. William C. Stokes,
George S. Wetherell,

Elias H. White,
Isaac P. Miller,

Henry C. Cassel.

Finance Committee:

George S. Wetherell,
Joseph C. Noblit,

Isaac P. Miller,
A. Jackson Wright,

Joseph Rhoads.

Auditors:

Charles P. Hastings,

John A. Duncan,

²Robert P. Nicholson.

² Deceased 1911.

JOURNAL OF PRISON DISCIPLINE AND PHILANTHROPY

ONE HUNDRED AND TWENTY-FOURTH YEAR

1787.

OF

1911.

THE PENNSYLVANIA PRISON SOCIETY

The 124th Annual Meeting of "THE PENNSYLVANIA PRISON SOCIETY" was held January 27, 1911, at the office of the Society at the S. W. Corner of Fifth and Chestnut Streets, Philadelphia.

The meeting was called to order by the President, JOSHUA L. BAILY.

The Minutes of the 123d Annual Meeting were read and approved.

Twenty-six members of the Society were present.

Reports were read from the Acting Committee and from the General Agent, FRED. J. POOLEY, which were approved and directed to be printed in the forthcoming JOURNAL.

The Treasurer, JOHN WAY, produced a detailed statement of the receipts and disbursements for the fiscal year ending December 31, 1910. (See page 15.)

The following Amendment to the Constitution was proposed, and directed to be laid before the next meeting of the Society, viz.:

"The number of Members of the Acting Committee may be increased to not exceeding sixty, provided the additional members shall be residents of Pennsylvania outside of Philadelphia.

"These Members may be elected from time to time at any meeting of the Acting Committee, according to the provisions of the By-Laws for filling vacancies, but the terms for which they are elected shall be for the

unexpired portion of the current fiscal year only. These additional Members will be eligible for reelection at the next Annual Meeting, and their respective terms of service shall then be assigned so as to be coordinate with the terms of service of the other Members of the Committee.”

JOHN J. LYTLE, on behalf of the Nominating Committee, appointed at the last Annual Meeting, presented in writing the nominations for the officers of the Society and for the members of the Acting Committee whose terms expire at this time. The President appointed as Tellers, JOSEPH C. NOBLIT, A. JACKSON WRIGHT and WILLIAM E. TATUM. The election having been duly conducted, the Tellers announced that a unanimous vote of the Society was cast for the ballot as presented by the Nominating Committee. (See page 3.)

The Nominating Committee proposed that HON. WILLIAM N. ASHMAN be elected Honorary Counselor. On motion the recommendation of the Committee was adopted with expression of appreciation of the long and faithful services of JUDGE ASHMAN for the Society.

The President appointed the following committee to nominate to the next Annual Meeting the names of officers, and members of the Acting Committee to fill the place of those whose terms then expire, viz.: GEORGE S. WETHERELL, JOSEPH C. NOBLIT, MRS. HORACE FASSITT, MRS. MARY S. GRIGG and PAUL D. I. MAIER.

The President (Joshua L. Baily) expressed his appreciation of the honor done him by his reelection for a fifth term. He said it was sixty years ago this month that he was elected a member of the Prison Society. Soon thereafter he was placed on the Acting Committee and for ten or twelve years he was a regular visitor at the Eastern Penitentiary. He also visited a number of our county jails and most of the penitentiaries of the Atlantic States and some of those in the West. But not being satisfied with the results, he gave up prison visiting and took up what he then believed to be more hopeful service.

“Now, after the lapse of many years,” he said, “I find myself again among you with a new vision as to the obligations and possibilities of the work in which we are engaged.” In the few recent years, he said, that he had had opportunity for observation, he had not found the evidence that the prisons

of this state (perhaps with a few exceptions) are in any better condition as to equipment and administration and facilities for the improvement of the inmates than they were fifty years ago.

“In all other lines of humanitarian and benevolent endeavor there has been a wonderful augmentation of the efforts put forth, and the means provided, and with corresponding beneficent results, but the work of prison reform has not kept pace with what is so observable in other fields of service.

“People generally are not much interested in the inmates of our prisons. They think that those who have committed crimes should be punished, and so they should; but it is not Christian to think that their criminality places them outside the pale of human sympathy and help. Even some of the greatest offenders may by kindness and good influences be restored to society, as some have, and become exemplary and useful citizens.

“I may not enlarge upon this subject at this time, but I want to say to you that I know of no line of benevolent activity that has a greater claim upon our intelligent and hearty service.”

A. Jackson Wright expressed his concurrence in the views of the President, especially as to this great opportunity which our work offers for service in the cause of humanity.

ALBERT H. VOTAW, *Secretary.*

An Act of 1911 relating to Visitors to Prisons.

No letters, notes, monies, or contraband goods of any kind shall be brought into or taken out of any Prison, except after inspection and with the permission of the Warden.

The Warden or Superintendent of the Prison is hereby authorized to search or to have searched any person coming to the Prison as a visitor, or in any other capacity, who is suspected of having any weapon or other implement which may be used to injure any convict or person, or in assisting any convict to escape from imprisonment, or any spirituous liquor, drug,

medicine, poison, opium, morphine, or any other kind or character of narcotics, upon his person.

Any person violating any of the provisions of this Act shall be deemed guilty of a felony, and upon conviction thereof shall be punished by a fine not exceeding one thousand dollars, or imprisonment in the State Prison not exceeding five years, or by both such fine and imprisonment, in the discretion of the Court.

Approved the eleventh day of May, A. D. 1911.

JOHN K. TENER,
Governor.

REPORT OF THE ACTING COMMITTEE

FOR THE YEAR 1910 TO THE ANNUAL MEETING OF THE PENNSYLVANIA PRISON
SOCIETY.

During the year 1910 the monthly meetings of the Acting Committee have been regularly held with the usual exception of two meetings of the summer months.

It has been a year of much interest and importance to students of penology and especially to the active workers who have charge of our prisons and reformatories.

PROBATION FOR ADULTS.

In the State of Pennsylvania the law providing for probation or suspended sentences for adult offenders under the care of probation officers, to whom reports must be made, has been in effect for almost eighteen months. Very general approval is expressed regarding the operation of this law. It is believed to be a very efficient means of restoring those who have lapsed from the right path to better methods of life and to a deeper realization of their duties to society. They have not become inoculated with the prison virus. The law applies to certain classes of crimes and to first offenders. It is understood that much of the efficiency of such a law depends on the character and vigor of the probation officer, who should be most earnest in presenting before such offenders higher ideals of civic virtue.

THE INDETERMINATE SENTENCE. PAROLE.

Since the last annual report of this Committee, in the State of Pennsylvania a system of parole for criminals sentenced to the Eastern and to the Western

Penitentiaries in accordance with legislative enactment, went into effect. The act provides that the court in pronouncing sentence shall state the minimum and maximum limits thereof, with the understanding that the minimum time of such imprisonment shall be the minimum now or hereafter prescribed by statute for the punishment of such offense, and that the maximum shall be the maximum now or hereafter prescribed as the penalty. Hence it does not follow, as has been supposed by many, that the minimum sentence is in every case one fourth of the maximum sentence, though there is a provision that when there is no minimum time prescribed by law, then the court shall impose a minimum sentence, which is not to exceed one fourth of the maximum time for the crime in question. Neither is a prisoner entitled to release at the expiration of his minimum sentence, unless it shall have appeared to the officers of the prison and to the inspectors that the applicant for parole has given evidence of being ready to become useful to the community. The new law has not been in force for a period sufficiently long to enable us to decide absolutely as to its merits, yet, if we are to have confidence in reports from other States which have tested such a law, we hope that a fair trying out of its provisions will demonstrate its benefit both to the convict and to society. The man or woman on parole by the necessity of the conditions involved therewith must give satisfaction until the maximum time for which he was sentenced has expired, by which time we believe many of them will have formed a habit of living decently and orderly. Ex-Governor Hanly, of Indiana, acknowledges that when he took office he felt great antagonism toward a law providing for parole before the expiration of the conventional sentence, but after closely observing the practical working of such system of parole during his term of four years, he became an enthusiastic advocate of the principle of the indeterminate sentence. State after State, nation after nation, have been for some years applying this principle in some form or other, and now many intelligent jurists and administrators of prison discipline have recognized that this element of the new penology has come to stay. This method of reforming criminals, moreover, was approved, after spirited discussion, by the late International Prison Congress, held at Washington, D. C., October 2-8, 1910. This Congress was not composed of mere theorists. Men of national and international renown as wardens and superintendents of great prisons and reformatories took part in the discussions and acquiesced in the conclusions. Warden Benham, of the New

York State Penitentiary at Auburn, regards the indeterminate sentence as a leading influence in the process of reforming the lives of those who have fallen. By some jurists in this and other States, fears have been expressed with regard to the practical service and to the execution of such a system of curtailed punishment. It is quite possible that experience may show that in this State some modification of the existing law may at some time be adopted, but great care should be exercised lest the reforming possibilities of the act should be weakened. It is to be hoped that a full opportunity may be given to observe the effects of this law, the essential principles of which are the same as have been found successful in other States.

The reports from those who have been paroled within the last year in this State are so far very encouraging.

Parole Officer John Egan of the Western Penitentiary reports on the first day of the current year that there were twenty-three under his charge on parole, and that the reports from them were with one exception satisfactory. There were ten then confined in the Western Penitentiary who were proper subjects for parole provided sponsors and employment could be obtained for them.

Full statistics from the Eastern Penitentiary have not been obtained. About thirty had been paroled by the end of last year from whom satisfactory reports had been received. About the same number were awaiting decisions from the Board of Pardons.

WORK OF GENERAL AGENT.

We desire to commend to the special attention of the Society and to the public, the efficient work of our General Agent, Fred. J. Pooley.

He has been constantly engaged in giving counsel to the prisoners, and particular attention to them at the time of their release. A large number of cases have been investigated, and where there have appeared to be mitigating circumstances, or where some relative or judicious friend has agreed to stand as sponsor, a remission or suspension of the sentence has

been obtained from the court. We have heard of no instance in which such favor has been abused. In one month of the last year over one hundred arrested and accused persons were discharged without receiving the stigma of a convicted felon. In the latter part of the autumn the privilege of an interview at the Central Station with the prisoners who have been committed to the County Prison after a hearing before the magistrates, was accorded to our General Agent by the Director of Public Safety. In order that he may thus occupy this very promising field for service, the Secretary has assumed a portion of the duties at the Eastern Penitentiary which had formerly been under the care of the agent. A full report of the work of the agent will be presented at the Annual Meeting, and will be printed in the JOURNAL.

COMMITTEE ON EASTERN PENITENTIARY.

Reports of the various members of this Committee show that besides a considerable number of visits that have not been reported, 6,130 visits to prisoners have been made during the past year. Some of our members have participated in the gospel services at the Penitentiary. We are firmly of the opinion that this work of visitation, which has been carried on by this Society for nearly a century and a quarter has been very helpful, although from the nature of the circumstances accurate statistics cannot be presented. The officials of the Penitentiary manifestly sympathize with the objects of these visits. Cleanliness and good order characterize the various departments of this large prison, to which ends a general overhauling of the plumbing with other improvements have been made conducive. A new three-story block, containing one hundred and twenty cells is in process of construction, and it is quite gratifying to report that nearly all the work of construction is being done by the prisoners. This affords employment for from one hundred and fifty to two hundred and fifty prisoners. While some other prisoners have employment in weaving, knitting stockings, chair seating and in helping in the kitchen and laundry, still many of them spend a large portion of their time in enforced idleness. This is a condition which is conducive to most serious evils, since it is liable to affect their entire career after they have left the prison walls. Is the State justified in forcing these

unfortunate human beings to remain idle year after year? Should we not rather use every means in our power to prepare them for useful citizenship?

Reports of the agent show that 333 prisoners have been supplied at the time of their discharge with suits either entirely or in part. We are increasing our efforts to find positions for such as need employment.

The warden, Robert J. McKenty, is untiring in efforts to promote the welfare of those under his charge. To him and to the other officials the members of the Committee are under obligation for the facilities afforded in making their visits.

PRISONS AT MOYAMENSING AND HOLMESBURG.

Our General Agent is unremitting in his endeavors to assist those confined in the prisons of the City of Philadelphia. The ladies of the Committee to visit the women prisoners at Moyamensing have been faithful in looking after their interests. Situations have been found for many, and not a few have been restored to their families. In all, 6,707 visits have been made to the inmates of the County Prisons.

We take pleasure in reporting that striped clothing as a distinctive prison garb was relinquished, except as a punishment for misbehavior, at the Holmesburg Prison on the first day of July, 1910. Gradually both in this country and England this ancient custom is being dropped. This is a further indication of the growing belief that the convict, after all, is a human being, and does not need the degradation of stripes in order to be distinguished from the rest of humanity.

COUNTY JAILS.

The Western Penitentiary and the Allegheny County Prison have been regularly visited by one of our committees, and there has also been regular visitation of some of the county jails. The evidence afforded that this

service has been acceptable and useful has been encouraging to us, and arrangements are being made for its extension to other parts of the state.

There is need of continual agitation to educate the public with regard to the necessity of some change in the administration of many of the smaller county jails of the State. They furnish little or no employment, herd a miscellaneous lot of lawbreakers in entire idleness, often keep the young and the old, the suspected, who may be innocent, and the hardened criminals in the same apartments, and thus become hotbeds for the dissemination of vice and lawlessness. We have already in these reports spoken of the usefulness of establishing district workhouses where employment can be furnished and where habits of industry may be engendered. The labor of the prisoners should so far contribute to the maintenance of the jails as to relieve the counties from the chief part of this burden. Sooner or later, we believe, all our States will adopt some such plan, and why should not the legislators of this great commonwealth give some earnest attention to the improvement of the county jails? Already we have in this State an institution which in many respects could be taken as a model for an industrial penal establishment. We refer to the Allegheny County Workhouse at Hoboken, Pennsylvania. Without infringing on the present laws of the State respecting prison labor, they give employment to all the prisoners. Located on a large farm, they supply their tables with vegetables from their own gardens and often have a surplus for the market. When new buildings are constructed, most of the work is done by the convicts. They have those who have been sentenced to terms of from twenty days to some years, and without difficulty they find work for all of them.

The legislature of Massachusetts has been considering a measure contemplating the establishment of such a system of district workhouses. It is quite possible that the State of Indiana may enact a measure of this kind within the next two years. Let Pennsylvania move forward in this work.

VISITS OF THE PRESIDENT.

The President of the Society has made visits to the Eastern Penitentiary, and to some of the County Jails of Pennsylvania. He has also visited the Maryland Penitentiary and the city jail of Baltimore; and has made two visits to the United States jail at Washington, D. C.

In the Washington jail and at the Maryland Penitentiary, he addressed the assembled convicts at their respective Sabbath afternoon chapel services.

THE PRISON CONGRESSES.

An event of great interest to all students of penology and of far-reaching influence in prison administration all over the world, was the quinquennial meeting of the International Prison Congress, which this year held its sessions in Washington, D. C. This occasion brought together jurists, superintendents of prisons and reformatories, eminent lawyers and philanthropic workers from thirty-four different countries of the world. Ninety delegates were enrolled from foreign countries. Not only were the conclusions of this Congress of importance, but the social intermingling of so many earnest men and women in a common cause had an equal value. The American Prison Congress also held its sessions in Washington, D. C., for two days prior to the opening of the International meeting. It was a notable gathering, and while its proceedings were weighty and not to be overlooked, yet it was somewhat overshadowed by the great interest felt in the International assemblage, as the latter was attended by so many who had already beyond the seas distinguished themselves as students of penological problems, and as practical administrators of prisons.

The Acting Committee deemed the conclusions of the International Prison Congress and the proceedings of the American Prison Congress of such immediate interest and importance as to justify the issue of a supplement to our Journal, which should contain these conclusions and proceedings. In this supplement were included an article by President Baily on the Eastern Penitentiary and the account of the Pennsylvania Prison Society which was prepared by the Secretary for publication in one of the bulletins issued by the International Congress during its sessions. Three thousand copies were printed and distributed.

OBITUARIES.

The deaths of John H. Dillingham and David Sulzberger, both occurring near the same time in early spring, removed two valuable members from your Committee. Appropriate notices of the life and faithful labors of each of these have been prepared and read in our meetings, and it is proposed to publish them in the forthcoming number of our Journal.

Our prayers and sympathy go out to all who have the oversight of those offenders, whom society, for its own protection and for the reformation of the sinner, declares must be debarred from freedom. Upon these officials devolves the duty not only of restraining the criminals within physical bounds, but—what is their chief mission—of implanting in their charges incentives for a change in their attitude in society. They should endeavor to inspire them with some sense of self-confidence and self-respect, so that they may be prepared to face the world with new aims and a spirit of hopefulness. The Pennsylvania Prison Society has from its inception desired to work in harmony with the administrators, and we trust has been comparatively free from the errors of a misdirected zeal. In another year this Society shall have rounded out a century and a quarter of existence. While we may contemplate with a good degree of satisfaction the achievements of past years, we are aware that in some lines progress has been slow, but we trust under Divine guidance to go on with the work with greater zeal and consecration.

On behalf of the Acting Committee,

ALBERT H. VOTAW, *Secretary.*

January 27, 1911.

TREASURER'S REPORT

John Way, *Treasurer*,
IN ACCOUNT WITH
THE PENNSYLVANIA PRISON SOCIETY

GENERAL FUND RECEIPTS FOR THE YEAR 1910

To Balance on hand, December 31, 1909	\$697 50
“ Members’ Dues	278 75
“ Collections by Secretary	3,253 00
“ Income from Invested Funds	1,911 52
“ Income from I. V. Williamson “Charities”	561 00
“ Interest on Deposits	20 31
“ Life Membership	50 00
“ Proceeds Sale of Bond	1,032 50
“ Legacy, Estate of Marianna Gillingham	805 54
Total Receipts	\$8,610 12

PAYMENTS, 1910

For Clothing Discharged Prisoners, Eastern Penitentiary	\$2,324 45
“ Appropriations for Prisoners Discharged from Philadelphia County Prison	835 00
“ Salaries	2,650 00
“ Expenses on Account of “Journal,” 1910	437 20
“ Expenses Delegates to Prison Congress	56 72

“ Sundry Printing and Postage	249 29
“ Office Expenses, Incidentals	148 52
“ Rent, Janitor Service	184 00
“ Capital Moneys Paid to Fiscal Agent for Investment	855 54
“ Balance, December 31, 1910	869 40
Total	<u>\$8,610</u> 12

BARTON FUND

Balance on hand December 31, 1909	\$193 48
Income from Investments (net)	94 66
Loan to Discharged Prisoner, Returned	10 25
Total	<u>\$298 39</u>

PAYMENTS

Tools to Discharged Prisoners	\$36 74
Amount Transferred to Principal Account	375 10
	<u>\$411 84</u>
Less Overdraft December 31, 1910	113 45
Balance	<u>\$298 39</u>

HOME OF INDUSTRY FUND

Balance, December 31, 1909	\$107 80
Income from Investments (net)	24 50
Income from Caroline S. Williams Legacy	150 85
Income from H. S. Benson Legacy	196 00
Total	<u>\$479 15</u>

SUMMARY OF BALANCES

General Fund	\$869 40
Home of Industry Fund	479 15
	<u>\$1,348</u> 55

Less Overdraft (Barton Fund)	<u>113 45</u>
Total Cash on hand December 31, 1910	\$1,235
	10

We, the undersigned, members of the Auditing Committee, have examined the accounts of John Way, Treasurer, have compared the payments with the vouchers, and believe the same to be correct, there being a balance to the credit of our deposit account under date of December 31, 1910, of \$1,235.10.

We have also examined the securities in the possession of our agents, The Provident Life and Trust Company of Philadelphia, and have found them to agree with an accompanying schedule.

JOHN SMALLZELL,
JOHN A. DUNCAN,
Auditors.

GENERAL AGENT'S REPORT.

Another year has passed and it becomes my duty to present to you a report of the work of the General Agent. During the past year I have visited over 6,000 men and women in the prisons in Philadelphia, and talked to them of the past and the future. I feel that much good has been accomplished and that while it is impossible to measure the amount of good accomplished by any fixed rule, yet there is evidence in all directions that the seed sown in the Master's name is bearing fruit abundantly. All over this broad land of ours, in every prison may be found the lost son or daughter; it gives the world but little concern so long as it is some one else's son or daughter who occupies a prison cell. Go through the prisons of our State and nine times out of every ten the prisoners will tell you they never would have thought of getting into prison; in a moment of temptation they fell and the world turns from them when the walls of the prison separates them from the outer world. My experience has taught me that if we were more sympathetic, more interested in fallen humanity, there would be less of crime. One Sabbath afternoon I visited a prison in western Pennsylvania. I arrived at the prison just about the time for service. As I was a member of the Pennsylvania Prison Society I was requested to say a few words to the men and women. My remarks were brief, and I closed with, "Your mother or wife, or sister is praying for you to-day, and when you leave your prison cell, go home to your mother, your wife, or to your sister; go back to your church, and God will bless and help you to be a better man or woman." One prisoner went to his cell weeping. I followed him to his cell and said to him, "Brother, why do you weep?" and he answered, "When you said 'mother' it touched a tender spot, and when I leave here I will go right home to her and will be a better man."

Scattered over the ocean there are many pieces of wreckage floating in different directions, first carried by one current and then by another; they are simply drifting. They have no purpose; they are afraid to trust themselves. I believe it to be our duty to bring to these men and women in

prison the strongest force we know, the power of love. Faith is a great power; so is hope; but charity, or love, is the greatest. Geologists tell us that the silent influences of the atmosphere are far more powerful than the noisy forces of nature. Quiet sunshine is mightier than the thunder, and gentle rain influences the earth more than an earthquake. Guided by this gentleness and faith, I have tried to be the instrument in God's hands of leading some poor souls to the path which leads to happiness and peace. It will probably be of interest to know something of the work of the General Agent at the Eastern State Penitentiary.

From January 1 to December 1, 1910: 493 prisoners were discharged: to these were given 298 suits of clothing, 382 hats, 301 shirts, 425 suspenders and neckties and 321 suits of underclothes.

In addition tools, etc., have been provided for several of these prisoners.

On December 1, 1910, Secretary Albert H. Votaw took charge of the work of the Pennsylvania Prison Society at the Eastern State Penitentiary in consequence of your General Agent having other duties at the Central Police Station, City Hall. I desire to thank the Inspectors, Warden, Chaplain and all the officials connected with the Eastern Penitentiary for assistance rendered me in the performance of my official duties.

Since October 1, 1898, I have made regular visits to Moyamensing Prison and the Philadelphia County Prison at Holmesburg. During 1910 more than 600 discharged prisoners were assisted with railroad tickets, board, lodging, room rent, tools, etc., and more than 700 letters written to relatives and friends at a distance, thus getting them quickly in touch with folks at home, and in many cases resulting in acquittal at court when a prisoner's good record was shown. The Inspectors, Superintendent, Assistant Superintendent, Prison Agent and Matron, and all connected with the prison have rendered me every possible assistance, which I more than appreciate. The commitments to Moyamensing Prison during 1910 were as follows:

White Males	White Females	Black Males	Black Females	Total
13,518	1,138	2,547	706	17,909
Total Committed 1909, 17,685				

From October 1, 1909, to September 30, 1910, 914 prisoners were sent to the County Prison at Holmesburg and 867 prisoners were discharged.

A glance at the above figures will show what a wonderful field of work there is for the Prison Agent and General Agent of the Pennsylvania Prison Society.

For the past two years I have felt very strongly the importance of visiting the prisoners at the Central Station, City Hall. The reason for this desire was brought about through a young man who was held in Moyamensing Prison on suspicion of larceny for a further hearing. I had a talk with him and he told me he left Louisville, Ky., seventeen years since, and had not written home in that time, and now he felt ashamed to write. After a long talk with him, he consented to let me write. When the letter came from the mother telling of her joy at the news of her long-lost son, whom she had long thought dead, I at once went to the prison and found the man had that morning been discharged—*the letter came too late*. Had I met the man when he was first arrested, that letter would have arrived before the second hearing, and upon his discharge he would have gone home.

It is with much pleasure I am able to state that on November 16, 1910, Director Clay granted me permission to visit the cell room at City Hall and directed the Superintendent of Police to issue me a permit, which reads as follows:

DEPARTMENT OF PUBLIC SAFETY,
BUREAU OF POLICE.
PHILADELPHIA, November 16, 1910.

Permission is hereby granted Frederick J. Pooley, General Agent Pennsylvania Prison Society, the courtesy and privilege of visiting prisoners in Central Station committed to County Prison.

(Signed) JOHN B. TAYLOR,
Superintendent of Police.

Since receiving permission I have made daily visits to the Central Station and have written 126 letters to different parts of the country. One letter

brought a young man's father from Johnstown, Pa., and another from Richmond, Va., and when the cases came to court they were discharged. At the request of the Detective Department three women who were found on the street without a home were placed in care of Mrs. H. Fassitt, and Mrs. Fassitt had them sent to the Door of Blessing, and afterwards had one woman sent to her home in West Virginia and another to her home in Maryland, and the other to a hospital for treatment. In some cases the magistrates have requested me to look into the case, and upon my report they were discharged and sent home. I look for wonderful results from this field of work. Only the other day a man came to me and said, "We had not heard from sister for five months and had it not been for your talk with her at the City Hall we do not know when she would have decided to come home." I think the words of our President, Joshua L. Baily, to the Magistrate when he visited the City Hall recently explains the new work of the Pennsylvania Prison Society when he said. "Our new work here is to try to keep men and women from going to prison." The Magistrates and officials of the City Hall are doing all they can to help to make the work of your General Agent a success.

If any little love of ours
Can make one life the sweeter;
If any little care of ours
Can make one step the fleeter;
If any little help may ease
The burden of another;
God give us love and care and strength
To help along each other.

In the spirit of these words I enter upon my new work. The Motto Calendars, so kindly given us each year for distribution at the Eastern State Penitentiary, Holmesburg and Moyamensing, with message of inspiration, are much appreciated.

The thanks of the members of the Pennsylvania Prison Society are due to the following for sending magazines and religious papers for the prisoners: Rev. R. H. Barnes, Louis C. Galenbeck, the late Miss Mary S. Whelen,

Attorney-at-Law William A. Davis, Mrs. Charles Chauncey, Miss A. M. Johnson, Robert P. Nicholson, Estelle A. King, C. Langenstein, Anna M. Tarr, Miss M. Louisa Baker, C. deB. L. Bright, Mrs. R. T. Taylor and Friends' Institute. Thanks are also due John J. Lytle for several hundred copies of *Sabbath Reading* which have been sent weekly to Eastern Penitentiary, Moyamensing and County Prison, Holmesburg. In addition I have recently received, through the kindness of Dr. Beverley Robinson, of New York City, \$25.00 from Mrs. Charles Chauncey, and from Mrs. A. Sydney Biddle the same amount to help along the work, and from Mr. Emlen Hutchinson, Chairman of the Board of Inspectors Philadelphia County Prison, \$60.00 with which to send home runaway boys. These amounts have been handed to our Treasurer for use when necessary.

I feel the work that the Pennsylvania Prison Society is doing is becoming more appreciated as the years roll on. With much faith in the future of our Society,

Yours very sincerely,

FREDERICK J. POOLEY,
General Agent.

DEPARTMENT OF PUBLIC SAFETY
BUREAU OF POLICE
DETECTIVE SERVICE

PHILADELPHIA, October 26, 1911.

JOSHUA L. BAILY, Esq., President of the Pennsylvania Prison Society, 500 Chestnut Street, Philadelphia.

DEAR SIR:—Your General Agent, Mr. Frederick J. Pooley, commenced work (as you know) at the Central Police Station last November, and we have found his work very helpful to this department and hope the good work your Society is doing through Mr. Pooley may be continued for many years to come.

WM. H. GRIFFING, *Clerk.*

Yours very truly,
ALFRED I. SOUDER,
Captain of Detectives.

I most cheerfully endorse the above letter and can vouch for the good work
Mr. Pooley does in connection with this Court.

DAVID S. SCOTT,
Magistrate Police Court, City Hall.

PENAL LEGISLATION IN PENNSYLVANIA.

After the hopeful beginning in improved penal legislation made by the Legislature of Pennsylvania two years ago in the enactment of a probation, indeterminate sentence and parole law, the work done and left undone by the recent session is, to say the least, most discouraging. Not only did a number of admirable bills receive no consideration whatever, but the law referred to above, which the Committee on Criminal Law Reform in its report at the last Prison Congress (Washington, 1910) pronounced "admirable," was so amended as virtually to eliminate from it the vital principle underlying the indeterminate sentence and parole.

The act of 1909 was based on a very careful study of the writings of the most advanced penologists, and of the statutes of those progressive states that have introduced the indeterminate sentence and parole with the largest measure of success. Its viewpoint was that of those who seek the reformation of the wrongdoer, and not of those who still have in their minds the old idea of retributive justice only; it made a break with the old codes, aimed to deal with the man and not with his crime, and had regard to his future rather than to his past; and possibly this radical departure from the traditional mode of thought and procedure, and the introduction of something evidently so new to many legal minds in Pennsylvania, though no longer so in some other States, was responsible for the hostility which the law encountered here and there.

Section 6 of said law reads as follows:

"Whenever any person, convicted in any court of this Commonwealth of any crime, shall be sentenced to imprisonment in either the Eastern or Western Penitentiary, the court, instead of pronouncing upon such convict a definite or fixed term of imprisonment, shall pronounce upon such convict a sentence of imprisonment for an indefinite term; stating in such sentence the minimum and maximum limits thereof; fixing as

the minimum time of such imprisonment, the term now or hereafter prescribed as the minimum imprisonment for the punishment of such offense; but if there be no minimum time so prescribed, the court shall determine the same, but it shall not exceed one fourth of the maximum time, and the maximum limit shall be the maximum time now or hereafter prescribed as a penalty for such offense: Provided, however, That when a person shall have twice before been convicted, sentenced and imprisoned in a penitentiary for a term of not less than one year, for any crime committed in this State, or elsewhere within the limits of the United States, the court shall sentence said person to a maximum of thirty years: And provided further, That no person sentenced for an indeterminate term shall be entitled to any benefits under the act, entitled 'An act providing for the commutation of sentences for good behavior of convicts in prisons, penitentiaries, workhouses, and county jails in this State, and regulations governing the same,' approved the eleventh day of May, Anno Domini one thousand nine hundred and one."

This section has been amended to read:

"Whenever any person, convicted in any court of this Commonwealth of any crime, shall be sentenced to imprisonment in any penitentiary of the State, the court, instead of pronouncing upon such convict a definite or fixed term of imprisonment, shall pronounce upon such convict a sentence of imprisonment for an indefinite term; stating in such sentence the minimum and maximum limits thereof; and the maximum limit shall never exceed the maximum time now or hereafter prescribed as a penalty for such offense: Provided, That no person sentenced for an indeterminate term shall be entitled to any benefits under the act, entitled 'An act providing for the commutation of sentences for good behavior of convicts in prisons, penitentiaries, workhouses and county jails in this State, and regulations governing the same,' approved the eleventh day of May, Anno Domini one thousand nine hundred and one."

It will be seen that this amendment puts it into the power of the *court* to fix *any* minimum below the maximum, instead of a minimum not exceeding

one fourth of the maximum; that it permits the court to name a lower maximum than the one now prescribed by law for any given offense; and that it strikes out the thirty-year clause altogether.

The practical effect of the former change is to destroy in great measure the value and efficacy of the indeterminate sentence as a remedial and reformatory measure. In other words, the amendment restores the vicious *inequality of sentences*, which is always so apt to breed a feeling of injustice and resentment in the one convicted, and which therefore greatly unfits him as a subject for reformatory treatment. It proceeds upon the long-accepted but false assumption that the court can in every case determine the exact degree of culpability and then adjust the punishment accurately to the crime. This is not only absurd, but it is impossible. A Solomon with all his wisdom could not have done this! As the law now stands, we shall again find, as is indeed already the case, that the same court or adjoining courts may, even under practically identical conditions, impose greatly varying sentences, instead of putting all upon whom sentence is passed on an equality and giving all, under identical conditions, an equal chance, as the law originally contemplated. Thus since the amended law went into effect sentences like these have been pronounced: Minimum 5 years, maximum 7; minimum 8 years, maximum 10; minimum 6 months, maximum 1 year; minimum 6 years, maximum 7; minimum 7 years, maximum 15. In two cases of burglary the one man received a minimum of 5 years, and a maximum of 10, but the other a minimum of only 2 years and a maximum of 5; while in another case an old crook, who had been convicted for the sixth time, and whose new crimes should have brought him a maximum sentence of 16 years, received a minimum of 3 months and a maximum of 1 year. Since the law first went into effect several courts have also imposed flat sentences, without a minimum. This is clearly in conflict with the law, which is mandatory. It does seem as if courts that try and sentence lawbreakers should be the first to have a reverent regard for law!

Again, under the amended law the *court* virtually determines when a prisoner shall be eligible to parole. This is, however, utterly subversive of the theory upon which the indeterminate sentence is based, namely, that *parole is to be granted when a prisoner is believed to be fit to be restored to society as a law-abiding citizen*. The time when this may be done no court

under the sun can fix, but only those who have the prisoner in charge and under observation, and even they may make mistakes. In the argument on the amended bill before the Senate Committee, it was said by those who opposed the original law, that it conferred judicial functions on the Penitentiary Boards, and that there was not a State in the Union whose statutes prescribed both the maximum and the minimum. But it was shown that under the laws relating to the Huntingdon Reformatory the courts in imposing sentence do not fix the duration thereof, but that the Board of Managers is authorized to terminate the sentence at its discretion, provided the detention shall not exceed the maximum of the term assigned by law for the offense of which the prisoner was convicted; also, that in many States, such as Massachusetts, Connecticut, Ohio, Indiana, Illinois, Michigan, Minnesota and others, the minimum as well as the maximum sentence to the state prison is fixed by law. It seems strange, indeed, that those who opposed the law of 1909 should have forgotten the law as regards Huntingdon; and that they should have been totally ignorant of the laws of other States on a subject that is to-day receiving the serious attention of many of the most thoughtful minds the world over!

On the benefits of a just and equal indeterminate sentence, Dr. Frederick Howard Wines, one of the best informed and most eminent penologists in the United States, expresses himself as follows:

“There is not, and in the nature of things there cannot be, any aid to a truly reformatory discipline like that afforded by the indeterminate sentence. Every prison official can testify to the dissatisfaction and unrest caused by the palpable inequality of sentences; an inequality which neither the legislature nor the courts can avoid or correct. The only equal sentence is the indeterminate sentence, with an identical maximum for all who violate a given section of the code, coupled with identical conditions by which to reduce it to the minimum *prescribed by law*. Its imposition removes all ground for complaint on this score. It also puts an end to the fallacious hope of an unconditional pardon. The prisoner is given to understand that the date of his release on parole depends entirely upon himself. The authorities desire his release and will help him to earn it; they are not his enemies, but his friends. This disarms him of his hostility to them. He is in a favorable state of

mind to receive treatment, and is disposed to yield obedience to them, if they keep their promise to him. This leads to coöperation in the effort made for his restoration, without which a cure cannot be effected. The hope of an early release sustains him under the depressing influence of prison life and stimulates him to exert himself to avoid losing whatever he has gained by diligence and good conduct. He is aided to form habits of industry and obedience, which tend to become fixed. He is trained and transformed.

“Under the indeterminate sentence the prison itself undergoes a gradual process of transformation. The moment that reformation rather than punishment becomes the watchword of the administration, a new spirit takes possession of it. The governor chooses better and abler men to govern it—men imbued with reformatory ideas and qualified to exert a reformatory influence; men of higher education, purer moral character, broader culture, loftier aims in life, greater devotion to their work. These wardens of the new school grow stronger with the passing years; their habit of opposition to everything that is low or crooked or mean or vile lifts them to higher and still higher levels. Failure to show reformatory results means failure in their chosen profession. They have a new responsibility, and they rise to meet it. They are open to every suggestion that can be of service to them in the accomplishment of their difficult task, a task from which an angel might shrink, and in which an angel might rejoice.”

The thirty-year clause of the act of 1909 was designed to protect society against the professional criminal. It is another absurdity of our criminal procedure that we release such periodically to renew their depredations on society. A dangerously insane person we put away until he is cured; and if he is never cured he is never released. We guard society against the contagion of certain virulent diseases. But when the habitual criminal has every now and then squared himself with the State by serving a term in the penitentiary, we again give him his freedom, though he may have hatched out another plot even before he leaves his place of confinement. Some other States have grown wiser. New York and Indiana sentence the habitual criminal for life on a third or fourth conviction; Connecticut to thirty years on a third conviction; but in Pennsylvania a thirty-year sentence, with a

minimum not exceeding seven years and a half, seems to have been considered too drastic. Better let society suffer than the criminal!

In amending the law of 1909, which, under its intelligent administration for two years was yielding most happy results, Pennsylvania has clearly been compelled to take a backward step. There was no public demand for a change; those charged with the administration of the law did not desire a change, but opposed it; and there is ample ground for the belief that the change was inspired by reasons of a purely private and personal character.

Nor is the last Legislature to be commended for what it failed to do.

In his report of November 10, 1909, Mr. Bromley Wharton, General Agent and Secretary of the Board of Public Charities, called attention to the needs of the county jails in these words: "This is a matter which has received serious attention at the hands of your Board. The prevailing system of government of the county jails is, in many respects, unsatisfactory. In most of the counties the jails are in charge of the sheriff, who, as a rule, knows little or nothing of hygiene or sanitation. Few jails have yards for exercise, or workshops, which results in the prisoners loafing in the corridors, smoking and playing cards. The filthy and unsanitary condition of some of the jails causes the long-term prisoners to welcome their transfer to the penitentiary."

At the subsequent session of the Legislature a bill, approved by the Board, was introduced designed to remedy the unsatisfactory and often disgraceful conditions existing in the prisons of various counties, and placing the control and management of all the county prisons and jails and the inmates thereof in Boards of Prison Inspectors to be named by the courts, one inspector to be a physician, and another, if desired, a woman. This carefully drawn bill, which, if it had become a law, would have inaugurated a most salutary reform where it is most needed in our penal system, passed the House, but was killed in the Senate. It was re-introduced in the last Legislature, but never even came out of committee.

A joint resolution, likewise approved by the Board of Charities, providing for the appointment of a commission to consider and report upon the advisability of establishing a state system of workhouses for

misdemeanants, so that county jails and prisons could be used solely for the imprisonment of persons awaiting trial or otherwise detained, and for convicts sentenced to brief terms, met a similar fate. So also an act authorizing the pensioning of deserving superannuated employés of penal, reformatory and charitable institutions of the State.

Another bill, strongly approved by the Board, but which after its introduction never again saw the light of day, provided for the establishing of a State Reformatory for Women between the ages of fourteen and twenty-one. That such an institution is most urgently needed is only too well known to charity workers throughout the State. It is almost incredible that such a wealthy and otherwise progressive State like Pennsylvania should be considered too poor to make at least a beginning of an institution of this kind. Were the people of this Commonwealth familiar with the work done and the results achieved by such an institution as the Massachusetts Reformatory Prison for Women, they would compel their legislators to take action. Great movements in behalf of the social welfare can after all be carried through only when there is an intelligent, widespread and persistent public sentiment behind them.

The one progressive penal act for which the last Legislature deserves credit is the bill "providing for the selection and purchase, or the appropriation from State forest reserves, of a tract of land and the erection thereon of buildings for the Western Penitentiary; making an appropriation therefor; authorizing the removal thereto of the inmates of the said penitentiary, and directing the sale of the site now occupied by the said penitentiary, and the buildings and materials thereon." This is in line with the recommendation of the Board of Charities, which, in its preliminary report for the years 1911-12, called renewed attention to the very unsatisfactory conditions surrounding the Western Penitentiary, and strongly urged its removal to some large tract of land in a rural section, so that labor, not in conflict with existing laws, might be provided for the inmates. In pursuing this course Pennsylvania will only be doing what some other States have already done or are about doing; and it is to be hoped that in due time similar provision will be made for the eastern part of the State. Might it not be well to keep in mind, however, the need of a central state prison for the confinement of habitual criminals, so that the two penitentiaries now in existence could be

used only for first-termers? This would make the reformatory process contemplated by the indeterminate sentence infinitely easier.

Another bill of extremely doubtful utility passed by the last Legislature, authorizes the judges of the courts of quarter sessions and the courts of oyer and terminer, after due inquiry, to release on parole any convict confined in the county jail or workhouse of their respective districts, and place him or her in charge of and under the supervision of a designated probation officer. County jails as now conducted are not reformatory institutions.

It will be seen from this survey that Pennsylvania is not making rapid progress in improved penal legislation; nor is it likely that we can hope for better things until some future Legislature will see fit to empower the Board of Charities or a specially appointed commission of expert penologists to devise a carefully articulated and homogeneous system of penal and reformatory institutions for the State. Such a system should provide for a radical change in the construction, management and internal administration of the county prisons; it should include a state system of workhouses, a woman's reformatory, a central penitentiary for recidivists, and a favorably located institution for criminals suffering from tuberculosis or dementia, where they could receive skillful treatment; it should make a strict separation between habitual criminals and first offenders, between young delinquents and those of mature years; and it should everywhere introduce approved reformatory methods, and make it possible to give those in confinement ample indoor and outdoor employment. It might, of course, be objected that a system so carefully planned and wrought out would be too expensive; but let it never be forgotten that in the end it is far better for the State, and indeed cheaper, to make *men* than to arrest, try and support criminals, and suffer the results of their depredations.

Philadelphia.

J. F. OHL,
*Chairman of the Committee on Legislation,
Pennsylvania Prison Society.*

SYNOPSIS OF THE EIGHTY-FIRST ANNUAL REPORT OF THE INSPECTORS OF THE STATE PENITENTIARY FOR THE EASTERN DISTRICT OF PENNSYLVANIA FOR THE YEAR 1910.

It is a pamphlet of eighty pages, bearing on the reverse of the title-page this inscription: "Printed and Bound at the Eastern State Penitentiary, Philadelphia, 1911."

There were in the Penitentiary on the first of January, 1910, as follows, viz.:

White Males, 1,157; White Females, 21; Total White	1,178
Colored Males, 332; Colored Females, 17; Total Colored	<u>349</u>
	1,527

Received during the year:

White Males, 310; White Females, 4; Total White	314
Colored Males, 89; Colored Females, 6; Total Colored	<u>95</u>
	409

Remaining at the close of the year as follows:

White Males, 1,073; White Females, 18; Total White	1,091
Colored Males, 301; Colored Females, 15; Total Colored	<u>316</u>
	1,407

The number at same date last year	1,527
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Showing a decrease of	120
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The discharges were:

By Commutation Law	471
By Parole	23

By Order of Court	14
By Order of Huntingdon Reformatory	3
By Pardon	6
Died (1 Suicide)	11
Expiration of term (only)	<u>1</u>
	529

The number who served out their terms in 1909 was 7.³

³ It would seem that by the actions of the commutation and parole laws it will become very unusual for a prisoner to serve out his term.

The inspectors state that “the influence of commutation and parole which are now in action is having a restraining effect on both the thoughtless and vicious,” but they further say, “the administration of the Parole Law has been too limited in its time and extent for us to do more than make mention of our efforts to intelligently apply it.”

Some other interesting statistics are as follows, viz.:

Number claiming this as their first imprisonment	223
Known to have been previously imprisoned	<u>186</u>
	409

Number under 30 years of age	257
Number over 30 years of age	<u>152</u>
	409

Number having trades	67
Number without trades	<u>342</u>
	409

Number idle at time of arrest	149
Natives of United States	324
Natives of foreign countries	<u>85</u>
	409
Conjugal relations:	
Single	230
Married	152
Widowed	<u>27</u>
	409
Number having children	111
Number of children	296
Crimes against person	124
Crimes against property	251
Crimes against person and property	<u>34</u>
	409

Twenty-four pages of the Report are devoted to “Criminal Histories” of sixty-four prisoners received during 1910 who had previously served one or more terms in this penitentiary (a considerable number of them in other penitentiaries or prisons), and who are reported as “illustrations of persistency in courses of crime, indicating the growth of a permanent class, calling for the most serious consideration.”

There is also a record of forty-three prisoners received in 1910 who have relatives in this penitentiary or in other prisons.

The inspectors refer with satisfaction to the new building of concrete construction containing one hundred and twenty cells “now rapidly nearing completion,” and say “the plumbing, steam fitting and electrical work

needed is under the care of experts, and furnishing the opportunity of training many of our inmates for future positions of usefulness and trust.”

Report is made that the library now contains 12,057 bound volumes, 852 of them in foreign languages, and that 66,887 books were taken out by the prisoners in the course of the year. A bookbinding and printing room affords employment to several prisoners; 1,419 books were bound and 743,248 pages of matter were printed for the various purposes of the penitentiary.

A school has been maintained for those classed as “illiterates,” and instruction in reading, writing and arithmetic given to 346 prisoners. The inspectors acknowledge the honor done them “by the visits of distinguished representatives of the prison systems and state departments of the nations of Europe, Asia and South America, with others of Canada and our own country, who were in attendance at the recent International Prison Congress in Washington.”

Grateful recognition is also made of “the valuable services of the visitors of the Pennsylvania Prison Society, the American Society for Visiting Catholic Prisoners, the Protestant Episcopal City Mission and the Prisoners’ Guild of the King’s Daughters, contributing to the comfort, encouragement and upbuilding of the prisoners,” and especial mention is made of the services of the Pennsylvania Prison Society in providing clothing for those prisoners in need at the time of their discharge.

The cost of maintenance for the year 1910 is reported as \$99,296.70, and the following is presented as “Account With Convicts for 1910”:

	DR.	CR.
Balance to credit of convicts January 1, 1910		\$11,644 96
Sent in by relatives and friends		20,798 33
Brought in by convicts on reception		1,013 81
Earned by over work		13,084 88
Allowance		426 00
Profit and loss		1 39
Paid to convicts on discharge	\$5,939 61	

Sundry goods, shoes, etc.	3,564 09	
Paid relatives and friends	19,249 22	
Paid for tobacco, tooth brushes, soap, etc.	6,554 32	
Balance due convicts January 1, 1911	11,662 13	
	<u>\$46,969 37</u>	<u>\$46,969 37</u>

REVIEW OF THE BIENNIAL REPORT OF THE INSPECTORS OF THE STATE PENITENTIARY FOR THE WESTERN DISTRICT OF PENNSYLVANIA FOR THE YEARS 1910-1911.

This report is contained in a pamphlet of one hundred and sixteen pages, of which about twenty pages are devoted to a historical account of the institution.

It appears that the first buildings were completed November 22, 1827, and on the supposition that very soon after prisoners were received at the institution, its penal history covers more than eighty-three years.

The statistics show that on January 1, 1910, the number of convicts was 1,261.

Received during the year 1910	297
Discharged during the year 1910	502
Population December 31, 1910	1,056
Showing a decrease of	205

Of the 1,056 prisoners there at the beginning of 1911, there were:

White Males	845
White Females	20
Colored Males	185
Colored Females	6

Those who were discharged may be classified:

Pardoned by the Governor	5
Expiration of Sentence	10
Commutation of Sentence	448
Transferred to Insane Asylum	8
Order of President (United States Prisoner)	1
Paroled	26
Died	4
	502

The parole officer, John M. Egan, states that “the parole system ... has already been productive of good results, and promises development that will compare favorably with the most successful reformatory work of other States.... The good deportment of our indeterminately sentenced inmates, their sincere efforts to map out for themselves a future foreign to their previous lives of crime and the faithful manner in which all, save two, of the convicts who have been granted conditional freedom are complying with the provisions of their parole, is gratifying.”

Of the 297 received during the year:

Those who are serving sentence for the first time	221
Those known to have been previously imprisoned	76
Under thirty years of age	152
Over thirty years of age	145
	297
Number apprenticed to some trade, including the unapprenticed who had worked at least four years at a trade	74
Number unapprenticed	223
	297
Natives of United States	202

Foreign Born	<u>95</u>
	297
Social Relations:	
Single	159
Married	114
Widowed	23
Divorced	<u>1</u>
	297
Nature of Crimes:	
Against Person	172
Against Property	<u>125</u>
	297

The gratuities to prisoners discharged in 1910 amounted to \$3,195.00. This sum presumably was given in cash and clothing.

The bill for provisions amounted to \$63,361.00.

Tobacco for the prisoners cost the State \$2,471.00.

The various industries in operation at the penitentiary show substantial gains:

During the year the sales of mats and matting amounted to \$114,475.00.

The profit from this industry was \$29,696.00.

The profit in the hosiery department was \$5,191.00.

The profit in the shoe department was \$1,665.00.

The earnings by labor, piece price, in the broom department, \$4,069.00.

It appears that the officials make effort to find work for the large majority of the convicts.

The number of days of labor reported by those in fair health is 275,051.

The number of days of idleness seems large, 85,074, but indicates that the convicts are at work a little over three fourths of the time.

They now have a regular optical department equipped with modern appliances, and in 1910 386 prisoners were fitted with glasses. The physician reports that in many instances those who were thus supplied showed both physical and mental improvement, to say nothing of the satisfaction of having deficiencies of eyesight remedied.

The chaplain reports that the number of bound volumes in the library is 11,882. During the year the number of books issued to the prisoners was 73,070.

The report contains resolutions of the Board of Inspectors *in memoriam* of John Linn Milligan, whose mission since 1863 had been in looking after the spiritual interests of the inmates of the Western Penitentiary. The following paragraph from one of his recent reports illustrates the spirit of the man and of his work: "Since my official relation with this prison began, 11,624 convicted men have passed within these gates. Many of these have gone out to struggle into the cold and suspicious world, friendless and alone, to struggle against the handicap that conviction and punishment of crime bring. Doubtless many have died, bruised under the burdens they have had to bear. Doubtless many more than the public believes have been absorbed into the ranks of industrial honesty of life and purpose. A small per cent. were instinctive and professional criminals, and nothing but the sovereign grace and mercy of the good Lord, who said to the poor sinner in the face of the murderous crowd, 'Neither do I condemn thee; go, sin no more,' could cure the crime habit for them.

"When I look back along the line of the regiment of convicted criminals, whom I have tried to strengthen with a new and manly purpose, the busy efforts do not seem long, nor has my knowledge and familiarity with their character hardened my heart nor diminished my desire to uplift them. Nor has the backward glance lessened my hope in true reformatory efforts, patient, firm and kind, and I believe more sincerely in the deep necessity of Divine love and power for their spiritual reclamation."

Warden Francies earnestly recommends that immediate steps be taken to remove the prison to a more healthful location on some large tract of land on which buildings may be erected largely by convict labor, and where the inmates may in the future be employed in producing their own sustenance thus saving a large part of the expense of the maintenance of the prison.

FORTY-FIRST ANNUAL REPORT OF THE MANAGERS OF THE ALLEGHENY COUNTY WORKHOUSE, 1910.

This is one of the two or three penal institutions of the State of Pennsylvania to which a farm is attached. The Allegheny County Workhouse has, during the last year, added 175 acres to its holdings of real estate, at a cost of over \$288.00 per acre, and the total acreage now belonging to the institution is about 280 acres. The total number of prisoners at the close of last year was 863, an increase of 70 over the number at the close of the year 1909. The daily average of inmates was 824. During the year 1910 there were received at the workhouse 3,836 male prisoners and 606 female prisoners. The entire number was 4,442, of whom 3,606 were from Allegheny County, and 836 were sent from other counties. For the maintenance of prisoners outside of Allegheny County, the institution received \$23,396.

Of the 4,442 committed, there were committed for the first time 2,301. One hundred and five had been committed seven times. One hundred and fifteen had been committed twenty times or oftener. Twelve prisoners were serving sentences for the fiftieth time or more. It is not a place for juvenile offenders. Of the whole number, 227 only were under twenty years of age. The greater part of them are between twenty and forty years of age. Only 630 could neither read nor write, of which number 438 were foreign born. Austria furnished the largest proportion of illiterates.

HABITS OF LIFE.

Four hundred and eighteen of these prisoners professed to be total abstainers from intoxicants, and 540 are classified as intemperate; 3,484 are occasionally intemperate or are moderate drinkers.

Thirty-seven hundred and forty-seven prisoners weighed at the time they were discharged 14,796 pounds more than when they commenced to serve sentence, or an average of three and ninth-tenth pounds increase for each individual. Six hundred and twenty-five women prisoners showed an increase of one and four-fifth pounds per individual.

Superintendent Leslie reports that the new wing is almost completed. It will contain 478 reinforced concrete cells, in four floors of about 120 cells each. At the back of the cells is a five-foot utility corridor, in which all plumbing, waste pipes and foul-air ducts are placed. Five feet in front of the rows of the cells is a steel proof cage, extending the full length of the rows. Between these cages and the outside wall is a corridor which is lighted by large tool proof, obscure wire-glass windows. The building is equipped with the best sanitary appliances. The entire cost will be about \$210,000.00, which includes dynamos, engines and power plant of sufficient capacity for another building of similar size. The larger part of the work was done by the prisoners. During this last year the total days' work performed by the inmates on the new building was 18,821.

But work on the new building is not by any means the sole industrial employment. The total number of days' work of inmates is reported as 171,952. The industries comprise broom and brush making, carpet weaving, farming operations, wall building and domestic employments.

The revenue from brooms is estimated at \$16,935.00; brushes, \$2,062.00, carpets, \$4,610.00; boarding prisoners, \$31,620.00; farm products, \$2,677.00.

The farm products of which the greater part was consumed on the premises include 5,865 bushels potatoes, 1,550 bushels wheat, 424 bushels sweet corn, 1,058 bushels green beans, 1,313 bushels tomatoes, 30,025 heads cabbage, 8,000 heads celery, 1,252 pounds butter, 3,039 gallons milk, 200 chickens, 496 dozen eggs. The total number of days' employment outside the walls was 28,857, and yet but one prisoner made his escape.

Chaplain Imbrie reports that there is a Sabbath service in the prison chapel, at which attendance is voluntary. "But few absent themselves from this service." They have a choir of their own, with an efficient musical director.

During the winter there are frequent entertainments held in the chapel, consisting of lectures, elocution and music. They have a judiciously selected library of 6,000 volumes, and the number of books taken out during the year was 18,167.

They have a total enrollment in the night school of 185, with an average attendance of about 176. This school is maintained largely for the benefit of the illiterates and of those whose education has been extremely limited. The difficulties of presenting statistics of those who are permanently reformed is well illustrated by the following extract from the chaplain's report: "As the year closes I find myself looking back and counting the meetings and partings with more than four thousand souls, who have come and gone during the past twelve months.... I have known each one for a few weeks or months, then they have gone like the ships that pass in the night.... A few have written kind letters to me after having reached their homes, a few have sent messages, ... some I have met on the streets of the city, and a few have been returned as prisoners to this institution, but the greater number have been absorbed in the great mass of humanity, and I have no further trace of them. The promises made at parting may be broken, the influence of the few weeks spent here may soon be effaced by the environments of the world, the seed sown in the gospel messages may never mature, but yet the effort has been made, and the increase is with the Father."

CORRESPONDENCE.

MT. LEBANON PRISON, SYRIA.

... This prison is located in Bate-id-deen, where the governor-general and all the government officials reside. There I had an interesting call on the governor of Mt. Lebanon, Yusuf Pasha Kusa.

I found him a very fine, polished gentleman, promising that he will help to put a check on the drinking habit of his country, and he gave me the privilege of visiting the prison and meeting all the prisoners. It was a great opportunity after the iron bars were opened and the kind-hearted warden let me in. The prisoners gathered around me in great curiosity, as they had never seen a woman in the court before. There were two hundred and seventy-five (275) men prisoners. There were Arabs, Druzes, Christians of all sects. The prison is a round building with dark rooms around and an open court in the center—four or five in every room. They are required to furnish their own beds, clothing and food, except they receive a portion of bread (about one and one half pounds) each day. They gathered around me and were very eager to hear what I had to say. For an hour and three quarters they listened very attentively, and at last they showed their appreciation by promising to live better lives. At the close of my speech one of the prisoners asked the privilege of speaking, which was granted. He said: “We want our friend to know that not every one of us is a criminal, some of us are here through lack of justice. If we were in a Christian country, under Christian and just laws, many of us would not be here.”

The poor prisoners who had no friends to supply them with any food have been living on bread and water, and I was allowed the privilege of providing half of a sheep. They were very grateful for it.

This will show you how prisoners live in a non-Christian country. Then I thanked the Lord for the Pennsylvania Prison Society, that is bettering the

lives of the prisoners.

Respectfully,
LAYYAH A. BARAKAT.

January 19, 1911.

A KIND WORD FROM BULGARIA.

SOFIA, BULGARIA, May 2, 1910.

I have the honor to acknowledge receipt of the copy of the JOURNAL OF PRISON DISCIPLINE AND PHILANTHROPY (January, 1910), published by the Pennsylvania Prison Society. I have read it with great interest and much benefit, especially the paper of Rev. J. F. Ohl on "The Administration and Needs of a Modern State Prison"; the excellent address of Mr. Frederick Howard Wines on "The Indeterminate Sentence, the Parole and the New Criminology"; and the articles by the Secretary on "County Prisons" and "Pentonville Prison, London, England." I appreciated the memorial of Rev. Samuel J. Barrows, whom I knew for many years.

With the highest respect,
DR. D. MINKOFF.

HUMANE OFFICIALS.

A few days ago I went to your city to secure the release from Central Police Station of a young lady about twenty-one years of age, who had been in Philadelphia but a few months. She had been accused by her employer of stealing. Whether so or not, the judge, Hon. David S. Scott, and the officials did not seem to believe it. That very efficient officer of the Pennsylvania Prison Society, Mr. Fred J. Pooley, telegraphed her brother in this county to send some one to Philadelphia to look after her interests. I went and found that Judge Scott had the right idea of treating uncertain cases of first offenders. He told me that he always gives the prisoner the benefit of doubt,

and so metes out justice that supposed offenders might have a chance to reform, if guilty, and not be made hard-hearted criminals. In this case he turned the young lady over to me, and I took her to her home, where a heartbroken father and mother awaited her.

I want to congratulate your city upon having such just and humane officials as Judge Scott, Reserve Officer Runner, Matron Cooper—the right woman in the right place—and Mr. Pooley is moving in the right direction in helping to save accused criminals. His is a great work, and no better man could be found for the position.

WILLIAM G. KERBIN, *Attorney-at-Law*.

Snow Hill, Md., Sept. 22.

—*From The Philadelphia Record*.

A STRIKING CONTRAST.

Westmoreland County is one of the prosperous and wealthy counties of Pennsylvania. An evidence of its ability to spend money for public improvements is its splendid courthouse. This cost a million and a half. It is a magnificent structure, rich in its art work and furnishings, and spotlessly clean. Few county officers in the United States are more comfortable and luxuriously housed.

Within a block or two of this fine pile stands another county building. It is the jail. What a contrast! Here, too, human beings are found, not, however, for a few hours of the day, but by day and by night, for weeks and months and years. But was there no thought for their physical well-being when this jail was built? Is there none now for their bodily and spiritual health? Not only is this jail an example of an altogether faulty type of prison construction, but as at present conducted it is unclean, and therefore unsanitary; it is shamefully overcrowded; young and old, first offenders and hardened criminals, are allowed to congregate indiscriminately in the corridors; no attempt at classification or reformation is apparent, and thus

the history of many another county jail is repeated in the midst of a community that by reason of its Christian character, intelligence, and wealth ought to be among the first in penal reform.

It is still true that many county jails are a blot—a very dark blot on our civilization. When will reform begin where it ought to begin, namely, at the bottom of our penal system?

AN OFFICIAL VISITOR.

COUNTRY LIFE FOR CONVICTS.

For some years this subject has claimed much attention, and latterly on account of the successful issue of experiments in this direction, the reforming possibilities of such methods have been prominently brought into notice. Hence we have felt justified in devoting considerable space in this number to this topic. It is appropriate that the citizens of Pennsylvania particularly should have their attention called to the out-door life for misdemeanants, since the Managers of the Western Penitentiary have decided and have been permitted to remove that institution to some large tract of ground within the State.

The two following articles are from "The Review," published by the National Prisoners' Aid Association, 135 E. 15th St., New York City.

THE FARM TREATMENT OF MISDEMEANANTS.

JAMES F. JACKSON.

Superintendent of Charities and Correction, Cleveland, Ohio.

The old type institution for misdemeanants failed to accomplish satisfactory results, mental, moral and physical. It seemed incapable of developing industry; it was unhygienic, without classification and with no adequate facilities for developing a man's will or increasing his capacity to do right. There was no individualism. The old workhouse was typical of the most intensified institutionalism, and institutionalism for an adult is an assured failure. Neither the arrangements of the building nor the manner of life nor the administration were conducive to the rehabilitation of the man. The old type of workhouse was constructed to avenge the wrong and not to correct the wrong-doer.

When the failure of that plan was fully recognized, people cast about for a remedy. They saw the success and satisfaction attending the location of charitable institutions in the country, and the idea of similar locations for various types of prisons occurred to them. And the cry against prison-made goods gave impetus to the movement.

The prison did seem to be the last place to make real the fact that “a man’s a man for a’ that.” But when the plowshare and the pruning hook began to supplant the stripes and the dungeon, people were certain that at last the dignity of manhood would be realized and that life and immortality were come to light.

St. Paul and Minneapolis were among the first to adopt the farm policy. Various other corrective institutions were established upon farms in foreign countries and in this country, especially within the past twenty years. One of the best institutions for misdemeanants thus established was located at Witzwyl, Switzerland, in 1891. But I wish to-day to speak with particular reference to Cleveland’s situation, its old workhouse and its new correction farm.

The Cleveland workhouse was constructed over forty years ago on the old lines for 500 prisoners, two miles from the center of the city. In 1904 and 1905, about 750 acres were purchased by the city nine miles from its center. Upon this land building was commenced several years later. Thus far there is built only the “service building” which at present fulfills all purposes. Ultimately it is to be used for store-rooms and shops. There are also to be built dormitories for trustees and semi-trustees, cell-blocks for the least tractable, kitchens, dining rooms, a chapel, women’s industrial building, school building and a greenhouse, all within a high wall inclosing eleven acres. The present intention is that the buildings and wall shall be constructed by the labor of inmates. Unfortunately there are no funds in sight to proceed with this construction.

All commitments are made to the original workhouse in the city. There the women remain, but about two fifths of the men are transferred to the correction farm. On a recent day the 102 men at the correction farm were assigned to work as follows: On construction of the sewage disposal plant, 24; in the stone quarry, 7; on the farm, 10; in the garden, 7; driving teams

(working the farm and hauling material to the filter bed), 12; care of horses and stock, 10; to work on the adjoining infirmary farm, 10; firemen, 2; carpenter, 1; barber, 1; and in the preparation and serving of the meals and care of the buildings and grounds, 18. Some of these last eighteen are unable to do heavy work, but all have fresh air and sunshine daily. At other times men do concreting, making artificial stone, fertilize and drain the land, which is not fertile, make roads on the farm and later they will construct the wall and buildings, plant trees and perform every sort of labor that will develop the land, and cause it to be highly productive and attractive in appearance. I also hope that later they will make and repair the needed wagons, tools and all the smaller farm implements; in fact, they now do some of that work, especially the repairing.

An apple orchard and much small fruit have just been planted under the direction of the state agricultural department. Last year by attention to pruning, spraying and smudge fires on cold nights, ours was one of the few orchards bearing fruit in all that region. Bee culture will be introduced and scientific forestration is to be developed. We are about to construct a dairy barn entirely by prison labor that will be a model of simplicity, sanitary construction and efficiency for the neighboring country.

We propose that the farm shall gradually become a model in all respects. In fact, this year we will produce certified milk for the city and the contagious disease hospitals. We plan, as soon as possible, that the correction farm shall produce the meat, milk, vegetables and fruit, both fresh and canned, for the entire workhouse and the public hospitals, while the adjoining infirmary farm will render similar service for its own use and that of the growing tuberculosis sanatorium.

From the standpoint of the prisoner, the farm policy is to give to each man the largest degree of liberty consistent with the well-being of others. The ultimate purpose is to employ as many without the walls as possibly can be trusted, and to employ out-of-doors within the walls all the remainder except those whose conduct imperatively demands closest supervision.

For years there will be work for all workers, no "idle-house" in any sort of weather or trade conditions. Every working day from twelve to twenty men are sent to work on the adjoining infirmary farm. Such transfer was one of

the purposes of placing the infirmary on a great contiguous tract of land. But the plan works to the detriment of the correction farm, which for years, and perhaps always, can use to advantage the labor of all men committed to its care. No key is turned on these men during the day. The night guard and the locked door are more to remove temptation than to prevent escape. You realize this when you know that all these men, instead of sleeping in stuffy cells, sleep in large dormitories, giving them every facility for overpowering the night watch and making their escape. Prisoners arrive a typical bridewell company, drunken, dirty, diseased and discouraged. They go away bronzed, with regular habits of living, accustomed to work, with a new determination and a new grip. Of course, some fail and return, but we do not assume to insure immunity against all the wiles of the world, the flesh and the devil.

Americans seem in constant search for a cure-all. There is a great demand for some hobby for the alert philanthropist to ride. In their order institutionalism, organized charity, juvenile courts, medical charities and country life have had their turn in the spotlight. Each is efficient, but all together are not sufficient. It is urged that if a convict be sent out under the blue sky to breathe God's pure air, behold green fields and hear the birds sing from the swaying boughs, he will become as one of the best citizens, especially if he digs in the dirt. But unfortunately the country does not afford the alchemy which converts men into angels. This is amply attested by the record of most diabolical crimes committed by country-bred men who would not know an elevator from a subway. The farm prison is no panacea, but it is tremendously worth while.

The men do not wear stripes in either prison. Consideration is combined with firmness in all our dealings, for it is the purpose that every requirement shall appeal to the fair-minded prisoner to be in his interest and for his benefit.

From the experience of the Cleveland correction farm several rather obvious deductions may be made; we are dealing with men, free moral agents, and a good physical environment does not guarantee their reform any more than does instruction in good rules for living.

We have learned that men are sent to the house of correction for a purpose. These men have faults to be corrected. These defects in the human mind are to be corrected, and no ordinary workhouse sentence will effect a cure of such defects as are hereditary or fully acquired. There is some concealed materialism abroad under the guise of environment, but the rankest exponent of environment should not expect to cure twenty years of bad surroundings accompanied by indifferent or bad actions even by a ninety-day period on a farm. And ninety days is in excess of the average period of confinement, although Cleveland "golden-rule policies" do not burden us with five-, ten- or fifteen-day men.

Our first appeal is to their sense of honor. Their appreciation of the confidence reposed in them often proves a potent influence for good. The transfer to the farm is such an expression of confidence. But it is given with discretion. Hardened criminals are not sent on distant missions unattended. In fact, they are rarely transferred to the farm.

As a part of their teaching the misdemeanants need discipline. It is necessary to keep the men on the farm for some time if they are to receive the needed development, especially the men who are sent for intoxication. Discipline is essential to instruction whether in the day school, the home or any other form of education. Many of these men are committed because of their lack of self-control and time is required for its development. We have learned that the men need to be taught the habit of industry and how to do some particular thing well. This is for their good while they are on the farm, and it is essential after they return to their homes. We have learned that not all men can be trusted, and we believe it has a bad influence on a man to attempt to get away, so we make him feel the bad result when he is caught. And the police are faithful to help catch deserters. Personality is a big factor; one man will accomplish far more with and for prisoners than another.

The farm does build up the body of the anæmic; it gives a good physical development. Moreover, the habit of industry can very much better be taught where results are being achieved on the farm than where work is being done at little or no profit in a factory. And efficiency is better developed on the farm. The farm has a direct physical value and an indirect

mental and moral value. It clears a man's mind and allows him to think straight. It affords a foundation for developing the spiritual structure, though of itself it will only slightly develop one mentally or morally. The man is now physically well, having had lessons in life. Here is the opportunity to further develop his will in order that he may do right. Looking to that end, we have introduced the regular presentation of the gospel in an orderly way. We intend to teach by example, but we need an official who shall be recognized by the prisoners as their friend, one who shall know them and make it his exclusive business to help them establish the desire to do right and aid them to be able to fulfill that desire. This seems one of the unsolved problems in Cleveland and in nearly all such institutions.

We have the parole system in operation, though there is not help enough for its most efficient execution. There is the Brotherhood Club for the men who have no home to which to go, established at the suggestion of a former prisoner. There a man may stay until he appears strong enough to live a normal life. The club is intended to be self-sustaining.

In my opinion the country is the place for the misdemeanant, for the very obvious reason that it affords plenty of light, pure air, a variety of good food and wide opportunity for productive occupation for the prisoners. There work is purposeful, not a time-killer. They work, eat, sleep, have recreation and religious teaching, all under approximately normal conditions. Every man is treated with kindness and consideration; discipline is not on parade. In short, the prisoner is treated like a man and to the extent that if there is manhood in him it will come out. The purpose is to develop honor and faithfulness, to accustom every man to useful occupation and to teach him to be effective. The officers are not armed, they are not even called guards. In fact, they act as teachers, foremen or farmers, as the occasion requires.

There is so much work to do in developing, enriching and cultivating the land, in erecting buildings, in making roads, that every feasible labor-saving machine is used. This of itself speaks to the man the appreciation of his work as a man and not a substitute for a machine.

The hope is that the farming and the making of its equipment, and incidentally the care of the prisoners and their quarters, will profitably

occupy practically all the available labor in such manner as to make a man not only fit but anxious to work. It is hoped that a large majority will be improved and many rehabilitated in an environment which favors giving every man all the chance he will use to reform. Moreover, it will thereby be apparent that the government is not only strong, but so merciful and so genuine in its fatherly desire to help each man that in turn he will cease to be “agin” the government; that he will turn from being a consumer to become a producer of taxes, turn from being his own and other’s enemy to become a friend to men.

PRISONERS AFIELD.

WARDEN J. T. GILMOUR, CENTRAL PRISON, ONTARIO, CANADA.

[Stenographic report of Dr. Gilmour's address at the annual meeting of the New Jersey State Charities Aid and Prison Reform Association, April 1, 1911.]

When we speak of criminals we are very apt to picture in our mind's eye the great criminals, those who commit atrocious crimes. But that class forms but a very small percentage of every prison population, and the methods of dealing with this class are much more clear and definite than dealing with the much larger class that are not quite so dangerous to society. When we speak of criminals we are apt to think of them *en masse* as a congregation of a few hundred or a few thousand men walled within a prison. Carlyle dissipates this view when he says: "Masses? Yea, masses, every unit of whom has his own heart and sorrows—stands there covered with his own skin; and if you prick him he will bleed."

In dealing with delinquency there are two basic facts: that the great majority of criminals are made in their youth and that the great majority of youthful criminals are handicapped in life's race either by physical, mental or moral defects. That prince of sociologists, Victor Hugo, evidently appreciated these conditions when he gave us that beautiful injunction to study evil lovingly, and then, later on, he gave the key when he said: "There are no bad weeds. They are only bad cultivators."

Two or three weeks ago a young man came into the corridor of our prison one day and asked, "Warden, will you take me out to the farm," (A prison farm, of which I hope to speak a little later.) I said, "No, Smith, I cannot take you out." Over in our country when we wish to conceal a man's identity we always call him Smith, and if we are particularly careful we call him John Smith. This man was a repeater; he was doing his fifth term; the four previous terms he had been a very difficult man to get along with, but

this time he had done very well. We could take no exception to either his conduct or his industry. He said to me, "Have I not done well this time?" I said "You certainly have." "Well, then," he said, "won't you give me a chance?" Of course, he had me there; I couldn't refuse him. I said, "Yes, I'll give you a chance." I took him up to the farm on a Monday; he worked well on Tuesday and on Wednesday; and on Wednesday night he skipped. The following Friday we got him again, in a town one hundred and fifty miles from home, and I pitied the poor fellow when he came back, he looked so dejected and so crestfallen; but I blamed myself entirely. I had imposed a burden of self-denial and a responsibility of conduct upon that man that he was not able to bear. He was one of that class, typical of a considerable percentage of our prison populations, that is on the borderland between sanity and insanity; and all the prison officials who are here to-night will recall scores of that class who form a part of their prison population.

As I say, I had made a mistake with this boy; but it only goes to show that penologists are not infallible, not even the youngest of them. If we were to stop to speculate upon the place that this element occupies in the divine scheme, we might tread upon very dangerous ground. It is enough for us to know that the God that made them is the God that will judge them; and herein lies our consolation. I had a man come into prison a few weeks ago to do two years, and yesterday afternoon, just an hour before I left home for coming down here, his wife came into my office leading a beautiful child five years of age by the hand. She came, as so many poor women come, to see if it were not possible to get some relief from her almost intolerable position. As the cruel truth dawned upon her that it was impossible for me to exercise clemency in regard to her husband, the woman turned to me and she said with much emphasis, "If they would only send me and my child to prison, how much better it would have been."

And the woman expressed a great verity. This little episode I relate to show you that society has two obligations: one to the man shut up within the prison, and perhaps an even greater obligation to the poor woman and children dependent upon the man shut up within the prison. It is necessary to lock up a certain class of men that society may be protected, and that these men may be improved; but when we do that are we going to put their

families in a position in which they will be impelled into either vice or crime? I think it is Milton who asks the pertinent question:

“What boots it, by one gate to make defense
And at another to let in the foe?”

In dealing with the wives and children, as well as with the prison inmates over in our place, we find an immense help from the Salvation Army. We have a prisoner's aid association and they work harmoniously together; but the Army has one or two advantages in this work that no other organization possesses. In the first place, they are not sentimentalists. They detail one man to give his time to it. He is as free to go into our prison as I am, and I think he spends as much time there as I do. He is there at night, on Sundays, on holidays, at noon hours, and he is going from cell to cell—he becomes thoroughly acquainted with every inmate. That gives that man an immense advantage in dealing with those men when their terms expire. The prison worker that expects to meet the discharged prisoner at the prison gate the morning he comes out, is much more apt to be worked by the prisoner than he is to work the prisoner. In three cases out of five he is clay in the hands of a designing man. One of our governors some years ago said that Canada was a land of magnificent distances. The same remark applies to your republic; but we get prisoners thirteen hundred miles from our prison. The Army, learning the condition of the families dependent on the man within the prison, writes to the corps, the Salvation Army corps in the town or the city where the man came from, and they are able by their very extensive and highly perfected organization, to make a study of each family, in addition to having arrangements made there for the employment of that man when his term has expired. We try, just as far as possible, to get all of our ex-prisoners out of the city. We do not wish them to colonize; we try to get them back to their homes where they came from, for unless a man is willing to go back and face society and live it down, the chances are that he will be driven into what is wrong sometimes through fear.

A year ago now we started our farm. It is fifty miles out of the city; it contains 530 acres. I commenced by taking up a little detachment of 14 men, and I rapidly increased that until I had 180 men, housed in temporary

quarters on this farm. The average term of the man on the farm was about five or six months, though I had several men there who had to do from one to two years. So far we have taken out to this farm 500 men, and out of that 500, 4 have escaped successfully and 3 or 4 have attempted to escape—unsuccessfully. The other day a minister in our city was calling and I gave him these statistics, and he looked very sad; he said it was a pity. I said it was; “but,” I said, “can you take 500 of your church membership and have 495 of them make good?” And he changed the subject.

I had a grand jury visit me the other day; it is a custom over in our country for the grand juries to come over a few times a year and tell us how to run the place (they sometimes stay an hour), and the foreman, before he went away, said to me, “Warden, I suppose you select the men whom you take out to the farm.” I said, “No, sir, I don’t.” He said, “How do you manage?” I said, “I select a very few whom I *don’t* take;” for I can take 90 per cent. About three weeks ago I was going into the farm one day, it was a cold, snowy, blowing, blustering day; the thermometer was about zero. When I came near to our building it was quarter to twelve o’clock, and I saw men coming from this direction and that direction, and from every direction pass alone; no officers with them at all, and it impressed me, perhaps, much more than it would another one not engaged in this work, for I asked myself the question, “How is it? These are the very men that I have had in Toronto behind bolts and bars, watched over by guns and guards, and here they are out here as free as this air that blows, and they are all coming in to sit down with each other at dinner.” I have asked our men on the farm—many of them different types, at different places, at different times—and I have asked them all the same question. “What do you find the greatest difference as between the prison in the city and the prison out here on the farm?” And without a single exception, in one form or another, those men have invariably given me the same reply. We give good board at the prison, but it was not that; it was not this liberty, comparative liberty. They have said to me: “Warden, to get away from that cell! To get away from that cell!”

I asked a boy two weeks ago, a young man, and he said, “Warden, to get away from that cell; for,” he said, “to sit there on Sunday, every evening and on holidays and have that cell gate staring you in the face, it is hell;” and he didn’t say it to be irreverent or disrespectful, but it was his pent-up

emotions. I believe there is something debasing—debasing to a man’s personal manhood—about life in a cell that no one can describe. Our men plow, they harrow, they sow the grain, they reap it; there is no guard with them at all. Of course, these are men who are near the end of their terms, perhaps men who have three months or less to do; but every prison contains enough of that class to enable them to carry on this class of work, agricultural work, to a financial advantage. If we had to pay guard to be with these various men we couldn’t do it, but we don’t. There is an indefinable something in God’s out-of-doors that has a beneficial effect upon humanity. I cannot tell you what it is. “The wind bloweth where it listeth, and thou hearest the sound thereof, but thou canst not tell whence it cometh nor whither it goeth. So is every man that is born of the spirit.”

A few months ago a professor from the University of Kansas wrote a little poem of two or three verses, and one of the verses reads like this:

“A breeze on the far horizon,
The infinite tender sky—
The ripe, rich tint of the corn fields
And the wild geese sailing high;
And all over upland and lowland
The charm of the goldenrod:
Some of us call it autumn
And others call it God.”

Do you catch the spirit of those beautiful lines? They tell (what I should like to tell were I able) of the way God speaks to our delinquents out on the farm through the hazy atmosphere and the golden sunsets; they tell of the way God speaks to those poor fellows through the growing and the ripening grains, and of the message that God sends to them through the birds that sing and soar over their heads. It suggests that beautiful thought of Browning’s:

“This world, as God has made it,
Always glitters. And knowing this is love,

And love is duty.”

We are aiming at something definite in the construction of our new prison. We are going to try to give that large class of boys and young men that come to prison for the first time, one more opportunity of going through life without being immured in a prison cell. In the construction of our buildings our domicile accommodations will be largely of the dormitory type—small dormitories, accommodating fourteen beds, with a large, semicircular bay window on one side which will serve as a sitting room, attached to which dormitory will be a completely equipped bedroom and dressing room. The corridor, which runs along the side where the officers will patrol, is divided from these rooms that I speak of by a glass partition, so that our men are thoroughly under observation every hour of the day and night, and there will be no opportunities whatever for some of those things that penologists so much dread. In addition to that, we have a number of single rooms and a number of cells, but in a prison which is destined to accommodate 600, we are only putting in 40 cells. The men who behave and who demonstrate that they can appreciate that dormitory life and maintain the condition of it, we hope to give ultimately a single room, and the men who fail to appreciate this dormitory life and don't behave as we wish them to, will then be demoted into a cell; but we are going to try, as I say, to get those boys through life, if possible, without the cell. Will we succeed? I don't know. I don't know. We have our critics, but this world will never be saved by the critics; it will be saved by the dreamers. The history of humanity is the history of indomitable hope. Emerson says that “Every thing is free to the man that can grasp it;” that “He who despairs is wrong.”

In dealing with delinquents, it is the personal touch that tells. Human nature craves for sympathy. Kingsley was once asked what the secret of his joyous, buoyant life was, and his ready reply was, “I had a friend.” Our Saviour was no exception to this rule, for as our Saviour approached Gethsemane, he yearned for a friend whom he could rely upon to wait and watch while he endured, and expressed it in that pathetic request to the drowsy Peter and his sleepy comrades. When we see a very simple duty staring us in the face in dealing with this class, we are too prone to say: “Lord, here am I. Send him.” It is an easy matter for a man of means to

write his check, or give his cash, but it is an entirely different thing to carry that gift to some poor fellow who is down and out and sweeten it with the fragrance of personal kindness.

“Not what we give, but what we share;
The gift without the giver is bare.”

We have church service at our place every Sunday afternoon and Wednesday afternoon. One day our preacher failed to materialize; the men were in the chapel and I did not wish to have them return to the cells without saying something to them; as I could not preach, I thought I would do the next best thing, and I would read another fellow's sermon, only I gave the other fellow credit for it. I was reading a book just then that interested me very much, and I went down to the office and got it and I read the first chapter, and when I finished I asked if I should read more, and they said, “Yes, Warden.” I read a second and a third chapter; I read as long as my voice would hold out; and as I had finished a man down in the audience said, “Won't you be kind enough to tell me the name of that book and the author?” I was very glad to have them ask the question; I told him. The next morning when I was going through the prison industries, the officers kept asking me what book I read the previous day. I said, “Why do you ask?” They said, “The men are all talking about it.” I sent down town and got fifteen copies and sent them around among the cells, with instructions that no one man could keep it for more than a week. When we collected the books at the end of the first week I found that a great many men had taken paper and copied out portions of it. This was practically a non-reading population. They had refused a lot of good books we had put in our library which I had thought were fine, much to my disappointment. Perhaps you would like to know the kind of book they so much enjoyed, and, with your permission, I will just read you the first page of the first chapter.

“Man has two Creators: his God and himself. The first creator furnishes him the raw material of his life and the laws of conformity with which he can make that life what he will. His second creator, himself, has marvelous powers he rarely realizes. It is what a man makes of himself that counts. If a man fails in life he usually says, I am as God made me. When he succeeds

in life he proudly proclaims himself a self-made man. Man is placed into this world, not as a finality, but as a possibility. Man's greatest enemy is himself. Man in his weakness is the creature of circumstances; man in his strength is the creator of circumstances. Whether he be victim or victor depends largely on himself. Man is never truly great, merely for what he is, but ever for what he may become."

Now that is pretty good meat. And that afternoon I was the one who learned the great lesson, for I learned that if we approach this subject in the right way we can waken, even in dormant minds, a desire for good literature. And my little experience of the afternoon revolutionized my method of dealing with the boys in this respect.

Dr. Jordan, of Boston, is the author of that book, and it is called "Self-Control." Briefly and hurriedly I have just tried to sketch some of the phases in dealing with delinquency. Who are they for whom we should do these things? What claim have they upon us? What is our relationship to them? Did you ever hear the story of the Scotch girl, the one who was carrying a crippled boy over a street crossing in Edinburgh? A gentleman, seeing her burden, hastened up to assist and sympathize with her, and the girl looked up smiling and replied: "Ah, sir, I dinna mind it. He is my brither!"

FARMING FOR EX-CRIMINALS.

According to Salvation Army officials of England, there is something about farming which alters the criminal mind. Just what it is they do not profess to know, but they do know from experience that tilling the soil makes a better man of the ex-convict. Land-owners in the suburbs of London have become interested and have sold the Army numbers of small tracts. These tracts, in turn, are rented on easy terms to released prisoners with an arrangement by which the latter are further enabled to buy them outright. Thus far nine hundred men who have worn the stripes have been bettered in this way. So successful, in fact, has the scheme proved that the people of London are actually beginning to see in these farmers a means of supplying a deficient vegetable market—for London, like American cities, is suffering to an extent from the high cost of living.

There is room aplenty in America for farm colonies of ex-convicts. Considering the results obtained in England, the scheme would seem worthy of experiment on a scale sufficient to prove its merit or demerit.

THE OMAHA MEETING OF THE AMERICAN PRISON ASSOCIATION.

REPORT OF THE DELEGATE.

OMAHA, NEB., October 20, 1911.

If the delegates to the American Prison Association are to form a judgment of the people of Omaha from the cordial reception they have met in this large western city, the conclusion may easily be reached that these people are most generous, hospitable and appreciative.

The first meeting of the Association was held in the Auditorium connected with the Hotel Rome. The number of delegates which had registered on the first day of the meeting was about 300. The Auditorium will seat several hundred and was almost filled by the delegates and citizens of Omaha, who appeared to be deeply interested in the proceedings.

Before us on a platform banked up with roses and carnations and draped above with the American Flag, sat the President, T. B. Patton, of Pennsylvania, and other officers of the Association; Governor Aldrich of the State of Nebraska, Mayor Dahlman of Omaha, and other eminent citizens.

Judge Lee Estelle, Chairman of the Committee of Arrangements, presided over this meeting. I understand that he came from a hospital, really a very sick man, to discharge a duty which he had previously agreed to perform. After a few brief words in which he referred to the badge adopted for the members on this occasion, which consists of a small gilt key with the usual ribbon attachment, he assured us that this key indicated an entrance into all the homes of Omaha and informed us that all the doors were not only open but really off their hinges for us. He introduced Governor Aldrich who then made the main welcoming speech.

He dwelt upon the material advantages of the State of Nebraska, presenting many statistics to indicate the vastness of the resources of this large state. Many of his contrasts were quite humorous. In figures he mentioned the value of the manufactured products of the State for 1910 and compared the amount with the value of the oil produced in the same year in the entire United States, showing a difference in favor of the State of Nebraska on these two accounts of more than \$37,000,000. He also showed that the value of beef produced in the State exceeded by \$2,000,000 the value of tobacco products in the United States for 1910. He told us that four thousand students were in attendance at their University, ninety per cent. of whom came from the State of Nebraska.

Mayor Dahlman followed with a kindly speech.

President Patton then delivered his annual address. If I may select any key note of his remarks, it would be to the effect that all of our prison officials should be selected, not only for the ability to govern and restrain, but more especially for the ability to influence and to build up the characters of those who are under them.

“The enactment of such wise legislation as is best calculated to properly protect society and to provide, under humane discipline and restraint, an adequate punishment for the offender; the securing of the proper and regular employment of the prisoner in prison under wise state law; the obtaining of a rightful portion of the prisoner’s earnings for the use of his dependent family; the systematic investigation of their real needs and the furnishing of prompt relief to the worthy and possible effort for their rehabilitation or removal to more favorable surroundings; the invoking of the probation law where such will be conducive to the best results; the comprehensive study of the prison population as far as possible to secure proper statistics on which to base accurate results; the well organized effort now at work in a number of our larger centers of population, in the study and betterment of the slum districts and the more general effort in many localities in the interest of the betterment of the environment of the children and youth, are all encouraging signs of the far-reaching interest at work for the uplift and saving of humanity, and to this end we say, Godspeed to

the organizations which in carrying forward their work, have gone back to the childhood days, and which, striving to break the bondage, not only of heredity and environment, are, through sympathy, love and interest thus securing a foothold in districts, communities and individual homes as well, and in which their organized effort is bearing a fruitage most encouraging, indeed and bids fair in due course of time to prove a strong bulwark in the reduction of crime, as well as of the criminal class.”

He referred with feeling to the deaths of Gen. Brinkerhoff and John J. Lytle, referring to the latter as an Apostle of Peace and Good Cheer. He then introduced Dr. Charles Richmond Henderson, of Chicago, who spoke with his usual energy and earnestness. He would do away with municipal and county jails, except as they may be necessary as places of temporary detention. They are run on such a small scale, he said, that the men in charge cannot have the training nor facilities that should be present in the reformation of criminals. He would have the criminals turned over to the state for punishment and reformation as soon as they are convicted by the county or municipal courts. Dr. Henderson emphasized the desirability of classifying wrongdoers and declared that the stamp of criminality should not be placed upon men who are not in spirit criminals. He pleaded especially for more humane treatment of habitual drunkards. “Can you cure a drunkard by giving him ten days in jail, in an atmosphere of degradation and crime, when the habit is to him a thing of generations?”

He commended the system recently adopted in the District of Columbia under which inebriates are sent to an institution in the country, where they are allowed to work in the open air under wholesome environment and are not branded as of the criminal class. “Sooner or later the student of criminology must come to a realization of the importance of the study of the child.” Heredity was mentioned as a factor in the problem, and the subject of early environment should receive careful study.

He congratulated the Association for their good work in advocating the adoption of laws providing for the Indeterminate Sentence. This does not mean that a man must always be discharged before the time of his maximum sentence, it may also mean the creation of tribunals to decide

whether a man is ready to be let loose upon society regardless of the time of his sentence. In other words, our prisons and reformatories should be conducted as hospitals and as institutions for those whose minds are diseased, from which patients are discharged upon recovery of their malady.

THE BIG MEETING.

The interest of the citizens of Omaha was displayed in their attendance at the mass meeting held on Sabbath afternoon in the Auditorium of the city. This building has accommodations for several thousand, and was nearly filled. This meeting was addressed by Professor Henderson, Warden Gilmour of Toronto, Canada, Bishop Tihen of the Roman Catholic Diocese of Lincoln, Neb., and Maud Ballington Booth. It is not my intention in this communication to present to you even a synopsis of what was said on this great occasion, but such meetings arouse interest in our cause to many whom our published reports never reach.

Professor Henderson condemned the changes of officials in our prisons on account of political conditions. He condemned the construction of iron cells for prisoners, saying that it was absurd that in the construction of prisons some dealer in structural iron should impose upon the officials a building more suitable for the caging of animals in a zoölogical garden.

Warden Gilmour of Toronto, Canada, emphasized the importance of fresh air and sunshine as a reformatory agency. "If we can take our prisoners from the jails and the workhouses and build them up physically, which we must do first if we would build them up morally, we have made the first great step toward reform." He has a farm of 840 acres, to which he has sent from 800 to 900 prisoners. Of them, he has failed in the reform of 3 out of each 100, and has succeeded in 97 out of every 100. The great majority of our jail population does not consist of criminals, he said, but of men who have been the victims of their environment. With the proper environment, such as fresh air and sunshine, wholesome work, kind treatment, trust reposed in them, and the sympathy and help of men and women interested in their welfare, they become useful members of society.

“The first man created, so divine history tells us, proved a delinquent, and God’s sentence upon him was to go forth and *till the soil*; can man to-day impose a better sentence upon our delinquents?”

Bishop Tihen dwelt upon the importance of investigating the causes of crime. “If you go down into the slums, and find that the chief cause of crime is the unfit habitations, do not condemn the habitations and stop there; find out the owner of them who profits from the dollars received for their rent, and denounce him. If you find the poor orphan girl working in the big department store at wages at which you know she cannot live upon, do not wait until you find her a few months later when she has become a fallen woman through the necessity to which hunger has driven her, and then try to reform her; go at once to the proprietor and demand that she receive living wages.”

Maud Ballington Booth electrified the great audience with accounts of what had been accomplished by the Gospel of Love and Hope. She told briefly of her work of taking men from prisons and giving them a chance on the farms and in the homes of our people. She finds positions for them when they can be recommended, and during the last fifteen years she recalled that many thousands have been saved by such treatment from going back to lives of crime. “It’s hope that they need, and there’s hope for all of them; if there’s hope for the millionaire, there’s hope for the burglar; if there’s hope for the politician, there’s hope for the man behind prison walls.”

ANNUAL SERMON.

The annual sermon was preached by Frank L. Loveland, of Topeka, Kansas. His address was eminently practical. He thought that prevention was better than rescue. The work of the “Good Samaritan” was good, but it were far better to extirpate the robbers. In these days the robbers are not the wild Bedouins of the desert, but society which tolerates conditions which bring forth a crop of criminals.

PRISON DISCIPLINE.

The report of the standing committee on Prison Discipline was presented by Warden Scott of the New Hampshire Prison, and was heard with great interest.

“Rules and regulations degrading in their character have long since been found to be more a menace to our system of prison discipline than otherwise. We have seen the downcast eye, the striped suit, short hair cut, lockstep, the dark cell and various forms of methods of corporal punishment replaced by more humane, more sensible regulations, and venture the assertion that in no prison in the country where this has been done will one fail to find the standard of discipline improved.

“When a man has been sentenced by the court to prison at hard labor, and during his confinement is of good behavior, he has the right to expect that no further punishment will be inflicted upon him than that prescribed by the court.

“The knowledge that special privileges are not granted to any prisoner that cannot be earned by every other is an effective aid to discipline. So, also, is cleanliness of person, clothing, bedding and cell essential to good conduct. Plenty of well-cooked and well-balanced food should be provided, a well-stocked library, a school for the illiterate, a new voice in chaplain occasionally at divine service, lectures on interesting subjects by prominent men, entertainments on holidays, all these are good for the prisoner and good for the prison.”

The plan of grading prisoners, in operation in many prisons, has undoubtedly brought about a more perfect system of discipline and should be adopted in all prisons and reformatories, large and small. It stimulates pride in most prisoners.

Productive labor in prisons not only greatly aids discipline and reformation, conserves the health of the prisoner and fits him to be self-supporting when discharged, but secures to the state relief from the cost of maintenance of the prisoners.

The warden or superintendent should be clothed with authority to appoint or remove the subordinate officers without hindrance or dictation.

Warden James of Oregon told of the results obtained through generous treatment of prisoners. "I find that the more privileges we can extend consistent with good discipline, the easier it is to obtain good discipline. Since we inaugurated amusements such as moving-pictures, Saturday baseball and other forms of exercise, reports of infractions of rules have been reduced fifty per cent." Warden Lewis of Michigan said that he allowed outside teams to play against the prison team. He thought the morale of the institution was improved by such innovation. Warden Sanders, of Iowa, thought that men would universally improve if we show that we have confidence in them. Some time ago his friends were very solicitous for his safety when he took a gang of eight convicts out to cut corn. Each convict was supplied with a keen bladed corn-knife and the cornfield was some miles from the prison. He went with them without arms and though his friends feared they would never see him alive, he accompanied them with no thought of danger. Some of them were serving life sentences, but they all returned in the evening, not having shown the slightest indication of escaping or offering violence.

FAMILIES OF PRISONERS.

Judge DeLacy of the District of Columbia sent a communication with regard to the dependent families of prisoners. He informed the Association that such families are cared for in two ways: one by direct appropriation from the public funds and the other by a collection of the earnings of the prisoners. In 1907 there was paid for this purpose from the funds, \$200.00; and from prisoners' earnings, \$6,050.00. In 1911 the public appropriation had reached \$3,000.00; and the amount dispensed from prisoners' earnings, \$38,684.00.

The eloquent earnestness of Maud Ballington Booth met with sympathetic attention.

"Every man who works in prison should, after his own board and clothing have been paid for, work for the support of his family or for those depending upon him. Some officials seem not to know that a convict may have a family, yet there is always this heart-saddened, home-broken circle

of gloom, the mothers, wives and children of convicts, about every penal institution. Wherewith are they to be fed and clothed? What recognition does the state give to them from whom it has taken their only source of support? I know of one case where the state gets \$500,000 a year from its convict labor. The larger the number of convicts, the greater the revenue. But what of the army of helpless and hopeless wives and children who are being deprived of the support of these laborers who are their husbands and fathers? The helping hand extended to the family has a reflex action on the man in prison. He realizes that his efforts are helping those who have been, and are still, dependent on his services.”

A SELF-SUPPORTING PRISON.

Parole Officer Venn of Michigan presented some facts of very great interest as determined from their experience in the Detroit House of Correction. The plant, costing originally \$190,000, had paid for itself and \$1,000,000 had been turned over to the city, to the prisoners themselves and to their families in the past thirty-two years. “In Michigan the contract system is doomed, its expiring gasp having been determined by legislative enactment. This system is held in disrepute, especially among the ranks of free-toilers whether organized or not. When the prisoner or his family, or the state, receives the profit from prison labor, and not some contracting firm, which pays to the state the paltry sum of from thirty-five cents to seventy-five cents per diem for the toil of its wards, the mouth of the objector is silenced.”

Mr. Venn said that very often the paroled man needed some financial assistance, sometimes to purchase tools, or for some very proper object, and that he had loaned to such men within the last two years the sum of \$860, of which sum \$630 had been refunded. He regarded most of the balance as an absolutely safe investment. The money which comes back can be used for others in need, and the prisoner is not treated as a pauper.

FEDERAL PAROLE.

The Attorney-General, Geo. W. Wickersham, delivered an able address on the "Federal Parole," now in operation at the various federal prisons of the country.

"Punishment in some form is still necessary to prevent crime. This is especially the case," he added, "in a community and at a time when diverse economic forces are struggling with each other for the mastery in the state, and where laws are enacted through the influence of one class or classes to control the action of another class who are unwilling to accept them as rules of action, because unconvinced of the wisdom or justice of the legislative policy which they embody. Yet a consideration of the nature of social organization will demonstrate the absolute necessity of all classes of society conforming to requirements prescribed by the duly constituted authorities—however wise or unwise those regulations may appear to those whose conduct is sought to be controlled by them. But within its constitutional scope the acts of the legislature stand until repealed as the mandate of organized society, and the continued effectiveness of organized society requires that obedience to such laws be compelled."

The attorney-general lengthily discussed the broad question of punishment for crime and the administration of the federal parole law.

Modern penal legislation, he said, is based on a recognition of the expediency of endeavoring to reform the criminal, and so great a stress has been laid on that feature in dealing with criminals, that "we sometimes forget that in order that punishment may act as a deterrent upon others it must appear as a badge of disgrace, and not simply the bestowal of benevolence."

Mr. Wickersham favored the extension of the parole law to include life prisoners. He regarded as an incongruity that prisoners sentenced to long terms for vicious crimes should be eligible for parole, when the man convicted of second degree murder must remain in prison for life.

"If the lawmaking power," continued Mr. Wickersham, "considers reformation, conditional liberation and reinstatement to a normal position in society possible in these cases, 'it is difficult to say on what principle the same possibility and hope of reformation, liberation and forgiveness should

not be extended to one guilty of murder under circumstances not punishable by death. While there is life there should be hope. It may be far off, delayed, a dim, distant possibility, but it would seem that that hope should be held out as a possible attainment to the meanest wretch who is allowed to live. The justice of man should aim at the perfection of divine justice, and though finite wisdom not knowing the hearts of men, may not always deal justly with offenders, yet it should not “shut the gates of mercy” against the meanest of God’s creatures.’”

Since the parole law was placed in operation last autumn, the attorney-general said, but one prisoner had violated his parole. The 200 prisoners who were paroled from the time the law was put into effect in the autumn of 1910 to June 30, earned nearly \$22,000, whereas, if they had remained in prison, the attorney-general pointed out, they would have been a charge on the government.

Mr. Wickersham expressed the belief that the parole boards should be enlarged by adding two unofficial persons selected from among prominent citizens of the locality in which the prison is situated.

The Federal Parole Law, approved 1910, provides that any prisoner confined in any United States prison or penitentiary, for a definite term of over one year, whose record of conduct shows that he has observed the rules of such institution, and who has served *one third* of the time for which he was sentenced, may be released on parole as hereinafter provided.... Nothing in the law is to be so construed as to impair the power of the President to grant a pardon or to commutation in any case, or in any way impair or revoke such good-time allowance as is or may hereafter be provided by Congress.

PREVENTION.

Governor Vessey of South Dakota took “Prevention” for his theme, dealing with the topics of child labor, contact with hardened criminals, lack of practical education in the schools, and bad environment at home, principally brought about by the curse of alcoholic drink.

“Child labor,” he said, “is a traffic in human souls, backed, supported and sustained by an unjust greed for gold, and though financially it may be profitable to the employer, it is nevertheless a shameful sale of humanity for money, and that such a cruel condition, with all its concomitant evils, should be tolerated in this progressive age and in this fair land, exceeds my understanding.

“But we are awaking from our dream of false commercialism and the institution of child labor must pass.”

PRISON REFORM LEAGUE OF CALIFORNIA.

Griffith J. Griffith, Secretary of the Prison Reform League of Los Angeles, California, read an interesting paper on “What the Prison Reform League Wants to Do and See Done.”

“Perhaps the question as to what we of the Prison Reform League have in view will be answered best by stating at the outset what we are not seeking. We are not attempting to boost any party ‘ism,’ creed or private interest. We are not endeavoring to inoculate the public with any new philosophy. On the contrary, we conceive ourselves to be severely practical people, who have noted a series of appalling facts and wish to know how they agree with certain principles by which society professes to be guided. We mark the startling difference between theory and fact; we try to bring that difference to the notice of those whom we can reach. All thinking men and women acknowledge, as it appears to us, that punishment can be justified only by the necessity of protecting society and diminishing as far as possible the tendency toward barbarism.

“We submit that every judge who passes what is called an ‘exemplary’ sentence in the hope of checking crime; every warden or jailer who excuses brutality toward prisoners with the plea that they have been sent to jail for punishment; every police officer who conceives it to be his role to terrify malefactors by the display or exercise of force, is making the same false argument as that by which the upholders of things as they are seek to justify capital punishment. All these classes, paid by society to protect it against

crime, are in our view victims of an utterly erroneous philosophy and intensify the very evil they are hired to cure.

“We say that it never pays society to wrong the individual. We say the state wrongs him inexpressibly when it professes to seek his reform and debases him; that murder cannot be abolished or diminished in volume by the state turning murderer; that when the state compels a man to toil for it without remuneration it is itself a thief, and that such is not the way to discourage theft; that if the poor, isolated, and therefore helpless, individual has duties toward the all-powerful state, infinitely greater are the duties of that almost omnipotent organization toward the individual. We say that side of the question has been overlooked, and we call attention to it in the very sharpest terms at our command.”

CAUSES OF CRIME.

Under this general heading, Dr. William Healy, Director of the Juvenile Psychopathic Institute of Chicago, read a paper on “The Problem of the Causation of Criminality,” and Dr. William Martin Richards, of New York, gave an address on “Physical Defects as a Factor in the Making of Criminals.” No synopsis of these papers can do them justice. They represent the latest investigations along these lines, and when published should be read by all who are interested in the betterment of humanity. Dr. Healy recited numerous specific instances of abnormal children whose lives were directly aimed at defiance of law, because of physical or mental defects or because of trivial circumstances, most of whom could be more or less readily reformed when handled in a rational manner.

Dr. Richards dwelt on such defects as bad eyesight, nasal imperfections, “flat foot,” and various spinal troubles, all of which were responsible for criminal tendencies. He told of some cases where the restoration of correct vision had resulted in changing lives, criminally inclined, into right habits.

Frederick Howard Wines, the only charter member of the Association present, said that in all the sessions he had ever attended he had not heard two such illuminating addresses.

COMMITTEE ON PRISON LABOR.

Kate Barnard, of Oklahoma, introduced a resolution providing for the appointment of a committee to study conditions of convict labor. It is gratifying to report that it was finally decided that the committee on organization at the next Annual Meeting in 1912 shall include among the Standing Committees a Committee on Prison Labor, whose duty shall be to study the aspects of prison labor and to report definite recommendations as to the most practical measures to be adopted by the various states.

The new committee to investigate the subject of prison labor will be composed of F. H. Mills, New York, Chairman; Albert Garvin, Chesshire, Conn.; Samuel Gompers, Washington, D. C.; Kate Barnard, Oklahoma City, Okla.; Dr. J. T. Gilmour, Toronto, Can.; Joseph P. Byers, Secretary.

DISCHARGED PRISONERS.

Miss Eva Booth, Chairman of the Committee on Discharged Prisoners, was unable to attend the convention, but the report of the committee was read.

This was a paper by Miss Booth, reviewing the problem of the discharged prisoner, urging that he must be understood as an individual in order that he might be helped to get a new footing in the world, and emphasizing the necessity of prison visitation to enable the workers to know the prisoner when he is liberated.

The parole system was commended and reference was made to the plan recently advocated by General Booth in England to have paroled prisoners make their reports to the Salvation Army and other charitable institutions instead of to the police departments.

Governor Folk's plan of having the family of the prisoner taken care of from the earnings of the convict's labor was commended.

FIRST OFFENDERS.

Eugene Smith, President of the Prison Association of New York State, read a report on "Statistics of Crime." His report was embellished with illustrations showing that no statistics of crime could be complete in giving an accurate account of the amount of crime actually committed for obvious reasons. The first crime of a trusted employé willing to make restitution may be covered up, the disgrace to members of the family, insanity, business reasons and other considerations tend to cover up the criminal acts of many first offenders.

He favored the idea of treating the first offender so that his criminal tendencies may be corrected if this is possible under the supervision of a properly constituted Board of Supervisors. He called attention to the cost of a man who was convicted and sent to prison for killing his employer in a fit of rage. His case was studied by prison physicians who believed the man was living between the borders of sanity and insanity. An operation was eventually decided on and a needle was removed from the brain. The man recovered his normal condition of mind and was discharged from prison.

ATTENDANCE—CONCLUSION.

The number of members and delegates in attendance was 385, forty-three states being represented, also Canada, Cuba and the Philippine Islands. No one could attend these meetings without being impressed that this Association has already accomplished great service in improving penal conditions in the United States, and that its influence is rapidly extending. It is to be hoped that all barbaric methods of discipline will soon be abolished, and that reformation of the criminal habit will be the chief object of detention. We still believe in confinement as a deterrent factor, but the renovation of character is the goal for which our penal institutions should strive.

It should not be accepted as a criticism on the proceedings of former meetings of the Association to say that the papers and the discussions this year reached high water mark.

It was concluded to hold the next annual meeting in Baltimore in the latter part of November, 1912.

The following officers were elected: President, Frederick C. Pettigrove, Chairman Massachusetts Prison Commission; Secretary, Joseph P. Byers, Newark, N. J.; Financial Secretary, H. H. Shirer, Columbus, Ohio; Treasurer, Frederick H. Mills, New York City.

ALBERT H. VOTAW,
Delegate.

NATIONAL PRISONERS' AID ASSOCIATION.

The representatives of various Prisoners' Aid Societies held two or three meetings while at Omaha, and formed a permanent organization, and the Executive Committee was directed to endeavor to secure recognition for the association as a constituent part of the American Prison Association with the privilege of presenting their work and interests at the Annual Meetings.

The officers of the National Prisoners' Aid Association are:

President: Judge T. F. Garver, Topeka, Kan.

Vice-President: William R. French, Chicago, Ill.

Secretary and Treasurer: O. F. Lewis, New York.

Executive Committee: General E. Fielding, Chicago, Ill.; F. Emory Lyon, Chicago; E. A. Fredenhagen, Kansas City, Ore.; R. B. McCord, Atlanta, Ga.; and A. H. Votaw, 500 Chestnut St., Philadelphia, Pa.

IN MEMORIAM.

JOHN H. DILLINGHAM.

John H. Dillingham, whose death occurred in Third Month, 1910, joined the Prison Society in the Fifth Month of the year 1882. He was elected a member of the Acting Committee a few months after joining the Society, which position he held until he was called to another and higher field of usefulness in the world beyond.

Our brother was always much interested in the humanitarian labors of the Society, and was a valuable visitor at the Eastern Penitentiary until, owing to his many other duties, he was obliged to discontinue that service.

As an evidence of his interest in and desire to help the objects of our care, it may be stated that a short time before his death he said it was his intention to resume his visits to them, but the Lord, "whose he was and whom he served," willed otherwise, and the service will have to be performed by others. His genial disposition, loving nature and conspicuous goodness endeared him to all who knew him.

DAVID SULZBERGER.

David Sulzberger, a member of the Pennsylvania Prison Society, and a member of the Acting Committee since 1903, was born in the Duchy of Baden, in 1838, and died in March, 1910, at the home of his sister in this city.

Reared by pious parents of the Jewish faith, and following the teachings of Jehovah, as manifested to one who sought earnestly to know the Divine Will, he devoted much of his life and means to practical philanthropy. It has

been said by a member of his own denomination that his crowning achievement was his splendid service to the cause of humanity in visiting the Jewish and other prisoners confined in the penal institutions located in this city. He brought to them the consolation of religion whenever they were amenable to its influence, the moral strength that emanated from a firm yet a kindly nature, the instruction that would give them a new start in the battle of life. Scarcely a week passed for many years without his visits to these prisoners, and at no time was he too busy to give his thought and attention to anything that would help the prisoners with whom he came in contact. Sometimes his kindness was abused, but that did not deter him from the work. He was possessed of the saving grace of a keen sense of humor that enabled him to take disappointments of that kind philosophically, as a part of the day's work, and furthermore he was not hunting excuses to justify him in stopping. He was simply seeking to lend a helping hand in a field from which all but the stoutest of hearts are apt to be repelled.

He was a Hebrew of the patriarchal type, and to him Judaism was not merely a creed but a system of life, and with scrupulous fidelity he observed the lofty precepts of that religion which render it a sacred obligation on the part of its devotees to help struggling humanity by their presence, by their sympathy, by their means, in all the incidents of human life from the cradle to the grave.

In an eminent degree he possessed the courage of his convictions, and never for one moment shrunk from what might be supposed to be a disagreeable duty, or from lifting up his voice in high places in a protest against what he considered wrongs which should be remedied.

His counsels will be greatly missed, and his loss seems irreparable, but we have the assurance that he had fought a good fight, that his lifework was accomplished, and we are thankful that we have known him as a friend, and that we have had the example of his strong devotion to duty.

MARY S. WHELEN.

The passing away, on February 15, of Miss Mary S. Whelen came as a distinct shock to her many friends and to the class of Philadelphians interested in the welfare of the Commonwealth and of the Municipality in one of its most vital issues.

Although the part Miss Whelen played so effectively, owing to her modesty, is known to but few, it deserves some mention in order that others, inspired by the same motives, may carry on the work to which she fearlessly and generously devoted many years. She was intensely interested in the welfare of prisoners convicted of crime, and as an active member of the Board of the Pennsylvania Prison Society, visited our prisons weekly, going into the cells, teaching many ignorant women to read and write. Her ear was ever open to explanations, and her kindly intuition made it possible for her to discern the motive which actuated a crime, and her advice and consolation often brought repentance and the possibility of better things. When the sentence expired, a woman having no home or place to which to go, was taken from prison, personally, by Miss Whelen to a destination where she might begin a new life; and letters from these once degraded creatures show in many instances reformation and warm expressions of gratitude. She was a member of the Committee on Police Matrons, and to this most beneficent service she gave practical and efficient aid. All her generous, charitable deeds have been accomplished so quietly and unostentatiously that it recalls the beautiful admonition, "Let not thy right hand know what thy left hand doeth."

ROBERT PARKER NICHOLSON.

Robert P. Nicholson, whose death occurred in July, 1911, as the result of an accident, had been a member of the Society for a few years, but had served on the Acting Committee for only a few months. His deep interest in the work gave promise of much service on behalf of our cause. His genial disposition had endeared him to a host of friends by whom he is sadly missed.



JOHN J. LYTLE, 1823-1911.

JOHN J. LYTLE.

“Thou shalt come to thy grave in a full age, like as a shock of corn cometh in in his season.”

Such was the passing of our beloved friend, John J. Lytle, whose death occurred on the 14th of Eighth Month, 1911, at his residence in Moorestown, N. J.

He was born at Alexandria, Va., in 1823, and had almost completed his eighty-eighth year. In his infancy his widowed mother brought her family to Philadelphia, and for the remainder of his life his residence was in or near that city. After he attained his majority he was a merchant for twenty-five years at the corner of Seventh and Spring Garden Streets.

Early in his business career he became deeply interested in personal visitations to the inmates of the Eastern Penitentiary. With the exception of Joshua L. Baily, President of the Society, his membership in the Pennsylvania Prison Society covered a period longer than that of any living member, both having been elected members in 1851. For nearly sixty years he was a member of the Acting Committee, and his official positions date from the beginning of his membership on the Acting Committee to the time of his death. Early in 1852 he was appointed Secretary of the Acting Committee, and in 1860 he was elected Secretary of the Society. This office he held till 1909, when, on account of the infirmities of age, he was released from the active duties of this position and appointed Honorary Secretary. From 1886 to 1908 he gave up almost his entire time and energies to work on behalf of prisoners. The Eastern Penitentiary was the scene of his greatest efforts. Almost daily did he visit this large institution, becoming personally acquainted with the thirteen hundred or more inmates and ministering untiringly to their physical and spiritual needs. He speaks of his great privilege and "pleasure to stand by the prisoner's side, to grasp his hand, to put new life into his heart, to endeavor to restore confidence in himself." While he believed in all changes in penal methods which are directed to the reformation of the prisoners, and in industrial and scholastic training, he was firmly convinced that the only sure basis of reformation was the life-giving, renewing power of the gospel of Christ. To this end he labored in season and out of season. He never forgot the spiritual interests of those whom he befriended. In his report for 1906 he says: "We must talk to the man in the cell as a man, a friend and brother.... That lives redeemed await the work of those who enter the prison cell with the message of Christ is well proven. Many a one has said to me—I believe in sincerity, 'The best thing that ever happened to me in my life was my sentence to the penitentiary. Here I have found my Saviour, whom I knew not before.'" This theme is dwelt on in all the eighteen reports which he made after assuming the duties of General Secretary in 1886. To illustrate his

faithfulness in the performance of duty, in a report made in his eighty-first year, he states that he had made during the year, four hundred and fifty visits to the Penitentiary (oftener than daily), and had conversed with the inmates, either in the cells or at the cell doors, about forty-five hundred times. "It is now fourteen years since my whole time has been given up to this work, and my interest in it grows from year to year.... I find there is an open door for me to talk to them of their spiritual needs...."

He was a delegate, in 1886, to the American Prison Association, and for twenty years thereafter he was usually in attendance at the sessions of that body, taking an active part in the proceedings and serving on its leading committees.

When the State Legislature, in 1895, discontinued the appropriation of \$3,000 per annum for the equipment and support of prisoners discharged from the Eastern Penitentiary, John J. Lytle solicited private contributions to continue this aid, and so successful were his efforts that no prisoner in need in all these years has been dismissed from that institution without practical help and sympathetic attention. The task of making these collections and of attending to every minute detail of their distribution involved unremitting labor, which he ceased not until bodily infirmity in his eighty-fifth year compelled him to take a much-needed rest. From the autumn of 1908 till the time of his death he was mostly confined to his home and vicinity, but was able to maintain quite a large correspondence and to enjoy the visits of his friends. His genial, kindly disposition had endeared him to a large circle of acquaintances, who deeply appreciated the privilege of his intimacy. His interest in the cause of the prisoners never flagged. The summons came while sitting at his writing table by the side of his dear wife, who had been his faithful companion for more than sixty-two years. A stroke of paralysis, then a few days of unconsciousness and all was over.

He was a birth-right member of the Society of Friends. In 1849 he was married to Anna Reeve, and he is survived by the widow, one son and four daughters.

PUBLICATIONS RECEIVED.

Report of American Prison Association, Washington, D. C.	1910
Correction and Prevention. 4 vols. Charles Richmond Henderson Editor, 1910.	
I. Prison Reform—Criminal Law in the United States.	
II. Penal and Reformatory Institutions.	
III. Preventive Agencies and Methods.	
IV. Preventive Treatment of Neglected Children.	
Bulletins of the International Prison Commission, Nos. 1 to 16. (Printed in French)	1910
Report of Board of Inspectors of Convicts of Alabama	1906- 10
Blue Book of Arizona	1911
Report of State Board of Charities and Correction of California	1908- 10
Report of State Penitentiary of Colorado	1910
Report of Prison Association of Colorado	1909- 10
Report of Prison Association of Connecticut	1909- 10
Report of Trustees of Reform School for Girls, Washington, D. C.	1910
Report of State Reformatory of Illinois	1910
Report of State Reformatory of Indiana	1909- 10
Report of Woman's Prison of Indiana	1910
Report of Board of Prison Commissioners of Kentucky	1910
Report of State Board of Charity and Correction of Louisiana	1909
Report of Prisoners' Aid Association of Maryland	1910

Report of Board of Prison Commissioners of Massachusetts	1910
Report of State Board of Charity of Massachusetts	1910
Report of Board of Charities and Correction of Michigan	1909- 10
Report of Board of Charities and Correction of Missouri	1909- 10
Report of Board of Charities and Correction of New Hampshire	1909- 10
Report of State Prison of New Jersey	1910
Reformation—66th Annual Report, New York Prison Association	1910
Report of State Board of Charities of New York	1910
Report of State Reformatory for Women of New York	1910
Report of Board of Charities and Correction of Rhode Island	1910
Proceedings of Conference of Charities and Correction of Virginia	1910
Report of State Board of Charities and Reform of Wyoming	1909- 10
Report of Society for Organizing Charity of Philadelphia, Pennsylvania	
Sterilization of Degenerates. Edwin A. Down, M.D.	1910
The Public and the Prisoner—Central Howard Association, Chicago, Illinois	
The Crime Problem. Colonel Vincent Myron Masters	1909
FOREIGN.	
Report of Howard Association—Crime and Its Treatment, London, England	1910
Le Droit De L'Enfant Abandonné, Budapest	1909

HONORARY MEMBERS.

Maud Ballington Booth,

⁴Gen. R. Brinkerhoff,

New York City.

Mansfield, Ohio.

Z. R. Brockway,	Elmira, N. Y.
Judge McKenzie Cleland,	Chicago, Ill.
Prof. Charles Richmond Henderson,	Chicago, Ill.
Judge Ben. B. Lindsey,	Denver, Colo.
Frederick Howard Wines,	Springfield, Ill.

LIFE MEMBERS.

⁴ Ashmead, Henry B.,	⁴ Learning, J. Fisher,
⁴ Baily, Joel J.,	Leeds, Deborah C.,
⁴ Bartol, B. H.,	Lewis, Mrs. Sarah,
⁴ Benson, E. N.,	⁴ Lewis, Howard W.,
Bergdoll, Louis,	Lewis, F. Mortimer,
⁴ Betts, Richard K.,	Longstreth, W. W.,
⁴ Bonsall, E. H.,	Love, Alfred H.,
⁴ Brooke, F. M.,	⁴ Lytle, John J.,
⁴ Brown, Alexander,	⁴ Maginnis, Edw. I.,
Brown, T. Wistar,	⁴ Manderson, James,
Brush, C. H.,	Milne, C. J.,
Buckley, Daniel,	⁴ McAlister, Jas. W.,
Carter, John E.,	⁴ Nicholson, Robert P.,
Cattell, H. S.,	⁴ Osborne, Hon. F. W.,
⁴ Childs, George W.,	Patterson, Robert,
Coles, Miss Mary,	⁴ Pennock, George,
⁴ Collins, Alfred M.,	⁴ Perot, Joseph,
Coxe, Eckley B., Jr.,	⁴ Potter, Thomas,
⁴ Downing, Richard H.,	⁴ Powers, Thomas H.,
Dreer, Ferd. J.,	⁴ Price, Thomas W.,
⁴ Dreer, Edw. G.,	Rhoads, Joseph R.,
⁴ Douredore, B. L.,	⁴ Roach, Joseph H.,
Duhring, H. L., Rev.,	⁴ Saul, Rev. James,
Duncan, John A.,	⁴ Santee, Charles,
⁴ Elkinton, Joseph S.,	⁴ Seybert, Henry,
Elwyn, Alfred,	⁴ Sharpless, Townsend,
Elwyn, Mrs. Helen M.,	⁴ Steedman, Rosa,

⁴ Fotterall, Stephen G.,	Stephens, Emily J. I.,
Frazer, Dr. John,	⁴ Sulzberger, David,
Frazier, W. W.,	⁴ Thomas, Geo. C.,
Goodwin, M. H.,	Thompson, Emma L.,
Grigg, Mary S.,	⁴ Tracey, Charles A.,
⁴ Hall, George W.,	⁴ Townsend, Henry T.,
Harrison, Alfred C.,	Walk, Jas. W., M.D.,
Harrison, Chas. C.,	⁴ Waln, L. Morris,
⁴ Hockley, Thomas,	Warren, E. B.,
Ingram, Wm. S.,	⁴ Watson, Jas. V.,
⁴ Jeanes, Joshua T.,	Way, John,
Jenks, John S.,	⁴ Weightman, William,
⁴ Jones, Mary T.,	⁴ Weston, Harry,
Jordan, John, Jr.,	⁴ Whelen, Mary S.,
Justice, W. W.,	⁴ Williams, Henry J.,
⁴ Kinke, J.,	⁴ Williamson, I. V.,
⁴ Knight, Reeve L.,	⁴ Willits, Jeremiah,
⁴ Laing, Anna T.,	⁴ Willits, Jeremiah, Jr.,
⁴ Laing, Henry M.,	Wood, Walter.
Lea, M. Carey,	

⁴ Deceased.

AN ACT

To define rights and functions of official visitors of jails, penitentiaries, and other penal or reformatory institutions, and providing for their removal.

Section I. Be it enacted, &c., That any person designated by law to be official visitor of any jail, penitentiary, or other penal or reformatory institution, in this Commonwealth, maintained at the public expense, is hereby authorized and empowered to enter and visit any such jail, penitentiary, or other penal or reformatory institution, on any and every day, including Sundays, between the hours of nine o'clock, ante meridian, and five o'clock, post meridian; and not before nine o'clock, ante meridian, or after five o'clock, post meridian, except with the special permission of the warden, manager, overseer, or superintendent in charge of any such jail, penitentiary, or other penal or reformatory institution.

Section 2. Upon any such visit of any official visitor to any such jail, penitentiary, or other penal or reformatory institution, such visitor shall have the right to interview privately any prisoner or inmate confined in any such jail, penitentiary, or other penal or reformatory institution, and for that purpose to enter the cell, room, or apartment wherein any such prisoner or inmate shall be confined: Provided, however, That if any warden, manager, overseer, superintendent, or person in charge of such institution at the time of such visit, shall be of the opinion that such entry by the official visitor into the cell, room, or apartment of such prisoner or inmate would be dangerous to the discipline of the institution, then and in that case the said warden, superintendent, overseer, manager, or person in charge, may conduct any prisoner or inmate, with whom such official visitor may desire a private interview, into such other cell, room, or apartment within the institution as he may designate and there permit the private interview between the official visitor and such prisoner or inmate to take place: Provided further, however, That no official visitor shall have the right or

power of privately interviewing any such prisoner or inmate except prisoners or inmates of the same sex as such official visitor.

Section 3. All powers, functions, and privileges heretofore belonging to official visitors of jails, penitentiaries, and penal or reformatory institutions, under the common statute laws, are hereby confirmed: Provided, however, That no such official visitor shall have the right or power to give or deliver to any prisoner or inmate of any such jail, penitentiary, or penal or reformatory institution, during such visit, any chattel or object whatsoever, except objects and articles of religious or moral instruction or use.

Section 4. If any such official visitor shall violate any of the prohibitions herein contained, any warden, manager, overseer, or superintendent of any such jail, penitentiary, penal or reformatory institution, may apply to any court of common pleas in the county wherein such institution may be situated, for a rule upon such visitor to show cause why he or she should not be deprived of his or her office; and upon proof to the satisfaction of said court being made, such court shall enter a decree against such official visitor, depriving him or her of all rights, privileges, and functions of official visitor.

APPROVED—The 14th day of May, A. D. 1909.

EDWIN S. STUART.

AN ACT TO INCORPORATE THE

Philadelphia Society for Alleviating the Miseries of Public Prisons.

SECTION 1.—*Be it enacted by the Senate and House of Representatives of the Commonwealth of Pennsylvania, in General Assembly met, and it is hereby enacted by the authority of the same,* That all and every the persons who shall at the time of the passing of this Act be members of the Society called “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” shall be and they are hereby created and declared to be one body, politic and corporate, by the name, style and title of “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” and by the same name shall have perpetual succession, and shall be able to sue and be sued, implead and be impleaded in all courts of record or elsewhere, and to take and receive, hold and enjoy, by purchase, grant, devise, or bequest to them and their successors, lands, tenements, rents, annuities, franchises, hereditaments, goods and chattels of whatsoever nature, kind, or quality soever, real, personal, or mixed, or choses in action, and the same from time to time to sell, grant, devise, alien, or dispose of; *provided* That the clear yearly value or income of the necessary houses, lands, tenements, rents, annuities, and other hereditaments, and real estate of the said corporation, and the interest of money by it lent, shall not exceed the sum of five thousand dollars; and also to make and have a common seal, and the same to break, alter, and renew at pleasure; and also to ordain, establish, and put in execution such by-laws, ordinances, and regulations as shall appear necessary and convenient for the government of the said corporation, not being contrary to this Charter or the Constitution and laws of the United States, or of this Commonwealth, and generally to do all and singular the matters and things which to them it shall lawfully appertain to do for the well-being of the said corporation, and the due management and ordering of the affairs thereof; and provided further, that the objects of the Society shall be confined to the alleviation of the miseries of public prisons, the improvement of prison discipline and relief of discharged prisoners.

SAM'L ANDERSON, *Speaker of House*,
THOS. RINGLAND, *Speaker of Senate*.

Approved the 6th day of April, Anno Domini Eighteen Hundred and Thirty-three.

GEORGE WOLF.

LEGAL CHANGE OF NAME.

The Following Confirms the Action Relative to the Change of the Name of the Prison Society.

Decree:

And now, to wit, this 27th day of, January, A. D. 1886, on motion of A. Sidney Biddle, Esq., the Petition and Application for change of name filed by "The Philadelphia Society for Alleviating the Miseries of Public Prisons," having been presented and considered, and it appearing that the order of court heretofore made as to advertisement has been duly complied with and due notice of said application to the Auditor-General of the State of Pennsylvania being shown, it is Ordered, Adjudged, and Decreed, that the name of the said Society shall hereafter be "THE PENNSYLVANIA PRISON SOCIETY," to all intents and purposes as if the same had been the original name of the said Society, and the same name shall be deemed and taken to be a part of the Charter of the said Society upon the recording of the said Application with its indorsements and this Decree in the Office of the Recorder of Deeds of this County, and upon filing with the Auditor-General a Copy of this Decree.

[Signed] JOSEPH ALLISON.

Record:

Recorded in the office for the Recording of Deeds in and for the City and County of Philadelphia, on Charter Book No. 11, page 1064. Witness my hand and seal of Office this 28th day of June, A. D. 1886.

GEO. G. PIERIE, *Recorder of Deeds.*

Transcriber's Note:

Obvious printer errors corrected silently.

Inconsistent spelling and hyphenation are as in the original.

*** END OF THE PROJECT GUTENBERG EBOOK THE JOURNAL OF
PRISON DISCIPLINE AND PHILANTHROPY (NEW SERIES, NO. 50)
NOVEMBER 1911 ***

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